

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 07/13/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

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Meeting ID: 161 108 5023
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Law & Motion - Only Demurrer/MTS

1. 9:00 AM CASE NUMBER: C25-02141
CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: CITY OF RICHMOND
TENTATIVE RULING:

Before the Court is a demurrer by defendants City of Richmond and Hector Lopez, City Senior Planner, to the first amended complaint. For the reasons set forth, the Court sustains the demurrer as set forth further below.

Background

In his operative first amended complaint ("FAC"), Plaintiff alleges he is the owner of a duplex located at 815-831 24th Street in Richmond (the "Property"). (FAC ¶ 2.) The FAC has 49 pages of allegations with Exhibits A through T. The Court summarizes the gist of Plaintiff's claims below.

Plaintiff asserts the City improperly denied his application for approval to subdivide the Property into

"two separate legal units," or for a conversion of the duplex into a two-unit condominium. (FAC ¶ 7.) He contends the City "improperly" treated his application as a request for a lot split subdivision, but that his application was really for a condominium conversion. (*See, e.g.*, FAC ¶¶ 56-60, 61.c.)

The six utility meters for the Property are all located at 831 24th Street ("Parcel B"). (FAC ¶ 2.) Plaintiff was advised that for a lot split, three of the six utility meters would have to be moved to 815 24th Street ("Parcel A") so that each separate property would have its own utility service. (FAC ¶ 10.) Plaintiff was advised that leaving the six utility meters only on one of the two proposed separate properties in a condominium conversion with a utility easement was only acceptable if there was a homeowners' association. (FAC ¶ 56 and Exh. N.)

Despite requests by Plaintiff for a further written determination by the Director of Planning or for the City to schedule a hearing on Plaintiff's application before the Planning Commission, Plaintiff alleges the City refused to schedule a hearing. (FAC ¶¶ 71-76, 74 (p. 37) – 81 (p. 40), and Exhs. S, T.) Plaintiff alleges that after Lopez advised Plaintiff in March 2025 of the Director of Planning's determination the application was approved on the condition the three utility meters be moved to Parcel A, Plaintiff repeatedly asked for a hearing on the application to be set before the Planning Commission. (FAC ¶¶ 71-81 (p. 40), and Exhs. S, T.) No Planning Commission hearings were held in April and May 2025, because the City advised him there were no agenda items, despite his requests for a hearing, and though Plaintiff was advised there would be a June 19, 2025 Planning Commission hearing, he was advised the June meetings were cancelled, but then also told the Planning Commission agenda for June 2025 was full and any hearing would have to be set in July 2025, but he was told by Lopez he had to cancel his application to receive a hearing. (FAC ¶¶ 71-86, 88-91.) Though he tried to exhaust his administrative remedies before the City between April and June 2025, the City provided no clear manner for him to do so. (FAC ¶¶ 88-93 and Exhs. S, T.)

On the merits, Plaintiff contends in the FAC that the City misinterpreted Plaintiff's application to approve the subdivision as a lot split; though he admittedly alleges that his application submitted to the City in or about April 2024 was for a lot split, he alleges he later informed the City he was changing his application to a condominium conversion and that the City began treating the application as a request for approval of the project as a condominium conversion. (FAC ¶¶ 3-7, 10-12, 14, 17, 18, 24, 31 (p. 11), 37, 51, 52, 53, 56-60, and Exhs. B [referring to helping him "subdivide" the property and changing request to a condominium conversion], J [minor subdivision], L [App. dated 11/26/2024 for "splitting the duplex to 2 separate [sic] condo or town house"], N, O, P [notably addressing practical difficulties complying with relocating meters for lot split and referring to condo conversion as "second option"].) (*But see* FAC p. 26, ll. 18-28 ["Plaintiff alleges that he submitted and pursued an application to convert an existing two-unit duplex into a condominium/townhouse common-interest development. Plaintiff further alleges that the City initially processed the application under that framework, requested and reviewed extensive documentation consistent with a duplex-to-condominium/townhouse conversion, and directed Plaintiff's submissions accordingly," and FAC ¶ 70, p. 34, allegations which appear to contradict Plaintiff's earlier allegations and records that his initial application was for a lot split, and in May 2024 and November 2024 he tried to modify the application to a condominium conversion].)

Plaintiff contends that there is no requirement that he have utility meters on each parcel under the Richmond Municipal Code, Pacific Gas and Electric's and East Bay Municipal Utility District's

requirements for the provision of utility service, and what he alleges were the City's representations regarding the requirements for a condominium conversion, which is what he asserts he applied for. (FAC ¶¶ 40-43, 45, 48, 53, 56-60 and Exhs. M, N, O, P [referring to "second option" of condo conversion].)

Plaintiff's original complaint was filed July 31, 2025 and included nine causes of action. Plaintiff's current complaint lists six causes of action, including a petition for writ of mandate (1st C/A), abuse of discretion (2nd C/A), misapplication of Municipal Code (3rd C/A), failure to perform mandatory duty (4th C/A), declaratory relief (5th C/A), and injunctive relief (6th C/A).

Legal Standards for Ruling on Demurrer

In ruling on a demurrer, the Court must accept as true all well-pled factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123.) In determining whether the complaint states a claim for relief, the Court gives the complaint "a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) The Court also considers matters of which the Court can properly take judicial notice. (*Carloss, supra*, 242 Cal.App.4th at 123.) (*See also Evans, supra*, 38 Cal.4th at 6.) In general, the same rules of pleading and practice applicable to civil actions apply in writ proceedings, except as otherwise specifically provided. (Code Civ. Proc. § 1109; *Boren v. State Personnel Board* (1951) 37 Cal.2d 634, 638.)

Statutory causes of action must be pleaded with particularity; the "complaint must plead every fact which is essential to the cause of action under the statute." (*Baskin v. Hughes Realty, Inc.* (2018) 25 Cal.App.5th 184, 207.) (*See also Fischer v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 604.) A demurrer must dispose of an entire cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.)

Defendants' Requests for Judicial Notice

In support of the current demurrer, Defendants filed a request for judicial notice, asking the Court to take judicial notice of: (1) a Planning Application Form pertaining to the Property apparently signed by Plaintiff (Def. RJN Exh. 11); (2) "Attachment 1" City of Richmond Planning Commission Resolution No. 26-01 dated January 15 2026 (Def. RJN Exh. 12); (3) Notice of Action by the City of Richmond Planning Commission dated January 21, 2026 (Def. RJN Exh. 13); and (4) Notice of Entry of Order dated February 26, 2026, attaching the Court's January 27, 2026 Order adopting the Court's January 26, 2026 tentative ruling (Def. RJN Exh. 14). (Evid. Code § 452(c) and (d).) Defendants' request for judicial notice also asks the Court to take judicial notice of the documents previously subject to Defendants' request for judicial notice and supplemental request for judicial notice filed in connection with Defendants' demurrer to the original complaint. Those documents are described at length in the January 26, 2026 tentative ruling, adopted as the Order of the Court by Order filed January 27, 2026. (Def. RJN Exh. 14 [1/27/2026 Order p. 2].) Defendants specifically request judicial notice of the various articles and specific sections of the Richmond Municipal Code ("RMC") identified in the prior ruling and Defendant's prior RJNs, which are the proper subject of judicial notice under Evidence Code sections 452(b) and (c).

Plaintiff's 19-page response to the request for judicial notice does not object to the Court taking judicial notice of the existence of any of the documents subject to the Defendants' current and prior RJNs. Plaintiff contends that judicial notice of the interpretation or truth of the content of the documents subject to judicial notice is improper where the interpretation or truth is reasonably disputable. This position is consistent with the general limits of judicial notice. (*StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice does not extend to the truth or proper interpretation of a pleading to the extent reasonably disputable]; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-115 [same]; *Sosinsky v. Grant* (1992) 6 Cal. App. 4th 1548, 1569 [judicial notice of prior order or judgment].)

The Court also agrees with Plaintiff that judicial notice cannot be used to convert a hearing on a demurrer into a contested evidentiary hearing as a demurrer is not the appropriate procedural mechanism for resolving factual disputes. (*Fremont Indemnity, supra*, 148 Cal.App.4th at 113-115.) On the other hand, as the Court indicated in its ruling on the prior demurrer, the allegations of a complaint are not required to be accepted as true if they are contradicted by matters subject to judicial notice. (*Evans, supra*, 38 Cal.4th at 638 Cal.4th at 6, 7 fn. 2, 8 fn. 3, and 9 fn. 5 [in which the Court took judicial notice of a City resolution, legislative history, a memorandum from a city manager, minutes, a city attorney's opinion, and a letter, that were alleged in the original complaint but not the operative complaint, from which both sides quoted, finding' "no potential dispute exists as to the letter's language, allowing its consideration on demurrer" and stating, " "[A] complaint otherwise good on its face is subject to demurrer when facts judicially noticed render it defective." [Citation.]' [Citations omitted.]".])

With these considerations and limitations, the Court **GRANTS** Defendants' requests for judicial notice.

Plaintiff's Opposition Violates the Applicable Rules

Plaintiff's memorandum in opposition to the demurrer, styled as "Plaintiff's Response to Memorandum of Points and Authorities in Support of Defendants' Demurrer to Plaintiff's First Amended Complaint for Damages" filed on March 16, 2026, violates applicable California Rules of Court and the applicable case law governing demurrers. First, the opposition far, far exceeds the 15-page limit for a memorandum, without any record before the Court that Plaintiff sought permission to file an overlength memorandum. (Cal. R. Ct., Rule 3.1113(d) ["no opening or responding memorandum may exceed 15 pages"] and Rule 3.1113(e) [application for leave to file overlength memorandum].) Plaintiff's memorandum is 54 pages. Second, a memorandum of 10 pages or longer requires tables of contents and authorities. (Cal. R. Ct., Rule 3.1113(f) ["memorandum that exceeds 10 pages must include a table of contents and a table of authorities"].) The opposition also violates that Rule. Third, the opposition attaches approximately 50 pages of unauthenticated exhibits. Even if authenticated, Plaintiff has not filed a request for judicial notice of any or all of the exhibits, and it is not clear to the Court that all of the documents would be proper subjects of judicial notice in any event. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994; Cal. R. Ct., Rule 3.1113(l) ["Any request for judicial notice must be made in a separate document listing the specific items for which notice is requested and must comply with rule 3.1306(c)."].)

In addition to the 54-page opposition memorandum, Plaintiff filed a 19-page "Plaintiff's Response to Request for Judicial Notice in Support of Defendants' Demurrer to First Amended Complaint." That

pleading also contains additional arguments regarding the merits of the demurrer that go beyond merely addressing whether and to what extent the documents are properly subject to judicial notice. The response to the request for judicial notice is at least in part a vehicle for making additional argument on the merits of the demurrer, and to that extent, constitute an improper additional opposition memorandum.

Though Plaintiff is self-represented, Plaintiff is required to comply with the applicable rules and procedures like any other litigant. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284-1285.) The Court's January 27, 2026 Order on Defendants' demurrer to the original complaint specifically informed Plaintiff that his 26-page opposition violated the rules regarding page limits and required tables of contents and authorities, and that the Court could not consider exhibits attached to Plaintiff's opposition to the demurrer to the original complaint except matters subject to judicial notice. (Order filed 1/27/2026 attaching 1/26/2026 Tentative Ruling pp. 3-4 ["Plaintiff's Multiple Oppositions and Exhibits Opposing Demurrer"].)

Plaintiff's current opposition not only ignores the court rules; it ignores the Court's prior ruling advising Plaintiff of the applicable rules and that he was obligated to comply with them. Rather than comply, Plaintiff has flouted the rules in his new opposition. The Court has nothing before it showing Plaintiff's conduct was reasonable in filing this clearly excessively overlength and non-compliant brief. In light of the Court's prior detailed ruling advising Plaintiff of defects in his prior oppositions, the applicable page length and tables requirements, and the Court's inability to consider evidence in the context of the demurrer, nothing on this record suggests that Plaintiff's opposition violated the rules through inadvertence, mistake, or excusable neglect such as might warrant the Court's exercising its discretion to consider the overlength memorandum. (Cal. R. Ct, Rule 3.1113(g).)

The Court will not exercise its discretion to consider Plaintiff's overlength and noncompliant opposition under the circumstances. (Cal. R. Court, Rules 3.1113(g) and 3.1300(d).) The Court has read and considered the first 15 pages of the opposition, up to the page limit allowed under the Rules.

Plaintiff's Unauthorized Surreply

On July 7, 2026, Plaintiff filed a "Response" to the Defendants' Reply, which the Court interprets as an unauthorized surreply filed in violation of Code of Civil Procedure section 1005(b), which has no provision for filing a surreply, and Rule 3.1113(d) of the California Rules of Court, which also has no provision allowing a surreply. The Court will not consider the improperly filed Response to the Reply.

Analysis

Defendants generally demur to the FAC in its entirety on the ground that Plaintiff failed to exhaust his administrative remedies. They also have filed general demurrers to each of the six causes of action on the ground that the facts alleged fail to state causes of action.

A. Demurrer to the Entire Complaint for Failure to Exhaust Administrative Remedies

Defendants reassert their contention that Plaintiff failed to exhaust his administrative remedies. The factual basis of their argument, however, is different from the basis for the failure to exhaust argued

in support of Defendants' demurrer to the original complaint.

"A demurrer may properly be sustained based on the failure to adequately plead exhaustion of administrative remedies. [Citation omitted.] In order to withstand a demurrer for failure to allege exhaustion of available administrative remedies, the plaintiff must allege facts showing that he did exhaust administrative remedies or facts showing that he was not required to do so. [Citations omitted.]" (*Tejon Real Estate, LLC v. City of Los Angeles* (2014) 223 Cal.App.4th 149, 156 [emphasis added].) The exhaustion doctrine does not apply if there is no administrative remedy provided or if the remedy is inadequate. (*Tejon Real Estate, supra*, 223 Cal.App.4th at 155-156 [" 'With limited exceptions, . . . where an adequate administrative remedy is provided . . . , resort to that forum is a 'jurisdictional' prerequisite to judicial consideration of the claim.' [Citation omitted, emphasis added.]"]).)

Defendants argue that on January 15, 2026, roughly six months after the lawsuit was commenced while Defendants' demurrer was pending and before Plaintiff filed his FAC, Defendants scheduled a hearing on Plaintiff's application for the lot split/condominium conversion before the City Planning Commission. The Planning Commission adopted a resolution addressing Plaintiff's application, Resolution 26-01, which approved the lot split with the condition of moving the three utility boxes and denied approval of Plaintiff's application to the extent it sought a condominium conversion because the conversion of the Property to a two-unit condominium project is prohibited by the RMC. (Def. RJN Exh. 12; RMC § 15.04.711.020 B.)

The City Defendants' demurrer for lack of exhaustion is made on the ground that the FAC fails to allege facts demonstrating that Mr. Malboubi exhausted his administrative remedies in light of the judicially noticeable fact that the City adopted Resolution 26-01 making a determination on Plaintiff's application, whether it was construed as an application for a lot split or as an application for a condominium conversion, and that it issued a Notice of Hearing with appeal information following the adoption of the Resolution, providing Plaintiff an administrative remedy of appeal from that determination. In the face of these judicially noticed facts (i.e., the facts of the Resolution 26-01 and Notice of Action), Plaintiff has not alleged facts showing that he exhausted his administrative remedies to challenge the determinations made in Resolution 26-01 administratively, or that an excuse or exception to the exhaustion requirement applies such that he was not required to pursue administrative review of Resolution 26-01 before proceeding in Court for judicial review.

The Court agrees that the FAC is deficient based on its lack of factual allegations of exhaustion or excuse in the face of Resolution 26-01 and the Notice of Action. The FAC's allegations address exhaustion events preceding the filing but do not address these post-litigation developments. Whatever excuse or justification may have existed for commencing suit in July 2025 does not address the current state of the facts which show at least on their face that the City Planning Commission conducted a hearing, issued a written decision, and issued a Notice of Action in January 2026. Indeed, this is the essential relief Plaintiff's seeks and prays for in his FAC. (FAC pp. 45-53.)

Though the City asserts that Plaintiff did not appeal the Planning Commission to the City Council (*see, e.g.,* Reply p. 2, ll. 20-24), the documents before the Court on the demurrer, including those subject to Defendants' request for judicial notice, do not show the absence of a timely appeal, or a bar of the statute of limitations as asserted in Defendants' reply. It is not clear enough to the Court whether

Plaintiff has conceded in his opposition or otherwise that he did not appeal the Planning Commission decision timely, or at all, or whether he can allege some facts showing an exception to the exhaustion requirement, though his ability to do so seems doubtful.

The demurrer to the entire FAC on the ground of Plaintiff's failure to allege facts showing exhaustion of administrative remedies, or an excuse for not exhausting such remedies, based on Resolution 26-01 and the Notice of Action (Def. RJN Exhs. 12, and 13) is **SUSTAINED**. The Court will grant Plaintiff **LEAVE TO AMEND** for the reasons stated.

B. Petition for Writ of Mandate (1st C/A)

Plaintiff's FAC includes over 44 pages of allegations leading to the portion of the FAC alleging his causes of action in paragraphs that are not sequentially numbered from the preceding allegations. (FAC pp. 45-49.) Plaintiff repeats each of the "causes of action" twice and then sets forth the relief he seeks. (FAC Prayer for Relief ¶¶ 49-53.)

As to the first cause of action, Plaintiff alleges a petition for writ of mandate under Code of Civil Procedure section 1085. Plaintiff specifically alleges: "This cause of action seeks a writ compelling Defendants to comply with their legal duties in processing Plaintiff's condominium/townhouse (condo/TH) conversion application. Plaintiff alleges that Defendants failed to follow required procedures, failed to issue a clear written decision with findings, and failed to provide a meaningful administrative appeal path. Plaintiff seeks an order directing the City to set aside the challenged action, apply the correct legal standards, and process the condo/TH conversion application in a lawful manner, including issuance of a written determination and provision of an appeal process consistent with City procedures and applicable law." (FAC pp. 46-47.)

Mr. Malboubi lists the relief he seeks in connection with the writ of mandate, which in summary is a writ compelling the City to (a) vacate the March 5, 2025 staff-level land decision (FAC Exh. N); (b) "resume" processing Plaintiff's application for a condominium conversion pursuant to the November 13, 2024 email (FAC Exh. J); (c) if Defendants contend "Homeowners Association (HOA) documentation, CC&RS, or other condominium-related recorded documents are required," direct the City to give Plaintiff a reasonable time to submit the materials; (d) preclude the City from denying the application for the condominium conversion for failing to previously provide this documentation; (e) require Defendants to complete processing of the condominium conversion application, issue a written decision with findings based on the "correct legal standards" within thirty days of the Court's order sufficient to permit a meaningful administrative appeal. (FAC pp. 45-47, 49-53.)

1. Writ of Mandate Standards

Code of Civil Procedure section 1085 provides that "A writ of mandate may be issued by any court to any . . . board, or person, to compel the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station" (Code Civ. Proc. § 1085(a).) "To obtain a writ of mandate, 'the petitioner must show there is no other plain, speedy, and adequate remedy; the respondent has a clear, present, and ministerial duty to act in a particular way; and the petitioner has a clear, present and beneficial right to performance of that duty.' [Citation, internal quotation marks omitted.]" (*California Privacy Protection Agency v. Superior Court* (2024) 99 Cal.App.5th 705, 721 [emphasis added]). (See also *Sacks v. City of Oakland* (2010) 190 Cal.App.4th 1070, 1081.)

" 'A ministerial act is an act that a public officer is required to perform in a prescribed manner in obedience to the mandate of legal authority and without regard to his own judgment or opinion concerning such act's propriety or impropriety, when a given state of facts exists.' [Citation omitted.]" (*Kavanaugh v. West Sonoma County Union High School Dist.* (2003) 29 Cal.4th 911, 916.) " 'Put another way, a ministerial act is one "[w]here a statute or ordinance clearly defines the specific duties or course of conduct that a governing body must take," thus "eliminat[ing] any element of discretion." ' [Citation, internal quotation marks omitted.]" (*California Privacy Protection Agency, supra*, 99 Cal.App.5th at 721 [emphasis added].) "While a writ may issue against a county, city or other public body or against a public officer, ' "the writ will not lie to control discretion conferred upon a public officer or agency." [Citations.] . . . ' [Citation omitted.]" (*Sacks, supra*, 190 Cal.App.4th at 1081 [emphasis added].)

2. Application of Standards to the FAC

Plaintiff's FAC, in conjunction with matters which are properly within the scope of judicial notice, does not allege facts stating a claim for a writ of mandate under the standards of Code of Civil Procedure section 1085 and the case law above. First, Plaintiff has now made it clear that he contends he is applying to the City to convert his two-unit duplex into a condominium project. RMC section 15.04.711.020 A.4 and B prohibits the conversion of a property to a condominium project if the conversion would result in a condominium project consisting of fewer than five units. He has therefore not alleged facts in the FAC showing that the City has a clear, present and ministerial duty to process an application for conversion of a duplex to a condominium project that would be comprised of only two units based on RMC section 15.04.711.020.

Second, the Court can take judicial notice that Resolution 26-01 was adopted by the City Planning Commission. The Resolution on its face shows the City explicitly considered and denied Plaintiff's application to the extent it was an application for a condominium conversion of the Property based on the prohibition of conversions to a condominium project of less than five units under RMC section 15.04.711.020. (Def. RJN Exh. 12.) Further, Resolution 26-01 and the Notice of Action (Defs. RJN Exhs. 12, 13) show that the relief Plaintiff presently seeks in the petition for writ of mandate cause of action is essentially moot, because Plaintiff has already been given the relief he seeks, specifically a determination of his application for conversion of the Property to a condominium project, a written determination, and a path to appeal the determination. To the extent he asks to "set aside" the March 5, 2025 determination (FAC Exh. N), that determination was effectively superseded or displaced when the City Planning Commission reviewed his application(s) and made the determinations reflected in Resolution 26-01 and the Notice of Action.

Third, the authorities indicate that approval of a subdivision, which includes a condominium conversion, is a matter of discretion with the City. (Govt. Code §§ 66424 [defining subdivision], 66473, 66474, and 66474.1 [city approval, conditional approval, or denial of approval of a parcel map based on state law and local ordinances]; *Youngblood v. Board of Supervisors* (1978) 22 Cal.3d 644, 653-656 [finding no "abuse of discretion" in approval of tentative map for subdivision as consistent with general plan, stating "it is only fair to the developer and to the public interest to require the governing body to render its discretionary decision whether and upon what conditions to approve the proposed subdivision when it acts on the tentative map"].) The Court in ruling on the prior demurrer set forth an exhaustive analysis of various provisions of the Civil Code and the Subdivision Map Act

("SMA") addressing their application to condominiums and the subdivision at issue here and the discretion granted to a public agency in approving a subdivision, which the Court will not reiterate here. (See Def. RJN Exh. 14 pp. 7-8.) Since the approval of the subdivision proposed by Plaintiff is discretionary, Plaintiff has not alleged facts in the FAC showing that Defendants have a mandatory, ministerial duty that can be the subject of the writ of mandate cause of action.

On these grounds, the demurrer to the first cause of action for a petition for writ of mandate under Code of Civil Procedure section 1085 is **SUSTAINED**.

C. Abuse of Discretion, Misapplication of Municipal Code (2nd, 3rd C/As)

Plaintiff alleges the second cause of action for abuse of discretion "is based on Defendants' arbitrary and capricious handling of Plaintiff's condo/TH conversion application. Plaintiff alleges that Defendants repeatedly changed the characterization of the project, applied shifting and inconsistent requirements, and relied on rationales not identified during the review process. Plaintiff further alleges that Defendants imposed or attempted to impose conditions not supported by the stated legal framework and denied Plaintiff a fair and orderly process by refusing to issue a written decision or to allow timely Planning Commission review." (FAC p. 47.)

He alleges the third cause of action for misapplication of the Municipal Code is "based on Defendants' application of inapplicable or incorrect Richmond Municipal Code provisions to Plaintiff's condo/TH conversion application. Plaintiff alleges that Defendants cited or relied on code provisions governing different types of projects, including provisions aimed at larger projects or different regulatory purposes, and used those provisions to justify denial, impose conditions, or obstruct appeal. Plaintiff seeks a determination that Defendants misapplied the municipal code and must evaluate Plaintiff's condo/TH conversion application under the correct legal standards." (FAC pp. 47-48.)

Reading through the lengthy allegations that precede these claims, Plaintiff contends that Defendants abused their discretion by treating his application as an application for a lot split, requiring him to move the three utility boxes as a condition to the lot split, to the extent considered as a condominium conversion, still requiring the utility boxes to be moved or imposing requirements for the lot split/conversion only required by the RMC for larger developments and not applicable to his duplex. Plaintiff contends no written directive from the utility companies requires relocating the three utility meters, citing Exhibit M to the FAC, another basis for these claims.

The allegations of the FAC and exhibits, and documents of which the Court has taken judicial notice, however, do not show that Plaintiff has stated these causes of action. To state a claim for abuse of discretion, Plaintiff must allege facts sufficient to show that Defendants acted in a manner that was "arbitrary, capricious, or entirely lacking in evidentiary support." (*Sacks, supra*, 190 Cal.App.4th at 1082.) Where, as here, the claim is based on a city's interpretation and implementation of its own ordinance, the Court accords "great weight to the administrative agency's interpretation and implementation of the ordinance it was charged with executing. [Citations omitted.]" (*Id.* at 1091.)

Plaintiff alleges that Mr. Lopez testified that RMC section 15.04.711.020 does not apply to a conversion of a duplex such as the Property. RMC section 15.04.711.020 does not apply because it defines a condominium conversion to exclude a condominium conversion project in which the project would have less than five units; the express stated purpose of RMC section 15.04.711.020 is to prohibit condominium conversions that would result in a condominium project of less than five units.

(RMC §§ 15.04.711.020 A.4. and B.)

Plaintiff in part alleges that the City imposed a requirement for an HOA or CC&Rs which only apply to larger condominium developments or to new, larger condominium construction under RMC sections 15.04.711.010 and 15.04.711.020, or that the requirements were "shifting." Plaintiff's FAC allegations show that Plaintiff's application shifted from a lot split to a "second option" of a condominium conversion of the duplex, as cited above. Exhibit N to the FAC, and the records subject to judicial notice, including the determination by the Planning Commission in Resolution 26-01, show that the City exercised its discretionary authority for approval of subdivisions (see authorities cited in connection with the first cause of action), allowed a subdivision of the Property as a lot split with the utility relocation condition, and denied a condominium conversion.

Whatever discussions, documents, and interim reviews may have occurred, the "determination" reflected in the March 5, 2025 email (FAC Exh. N) and the Planning Commission Resolution No. 26-01 essentially reached the same result. The denial of the condominium conversion of a duplex is consistent with RMC sections 15.04.711.020 A.4 and B, so Plaintiff has not alleged facts demonstrating an abuse of discretion or misapplication of those sections in denying his condominium conversion in Resolution 26-01.

Plaintiff's argument that the PG&E Rules do not require relocation of utilities under the circumstances for a condominium project similarly fails to demonstrate that the City abused its discretion in approving the subdivision of Plaintiff's Property by imposing the condition of relocating the three utility boxes. In the FAC and in the first portion of Plaintiff's opposition, Plaintiff cites no authority that limits the conditions the City can impose in exercising its discretionary authority to approve the subdivision based on whatever rules the public utilities may have.

Further, the excerpt of Rule M on which Plaintiff relies to show relocation of the three utility boxes was not required by PG&E at least appears to be incomplete and does not appear to apply to a condominium project, whether a conversion or new construction. A condominium project is not a building with "two or more tenants" or an apartment building or mobile home park, nor is it similar to an apartment building or mobile home park because in a condominium project, there is separate legal ownership of each legal unit. (See FAC Exh. M (Rule 16, paragraph 3.a. ["MULTIPLE OCCUPANCY. in a building with two or more tenants, or where more than one meter is used on the same Premises, the meters normally shall be grouped at one central location, or as otherwise specified by PG&E, and each meter position or socket shall be clearly and permanently marked by Applicant, customer, or owner of the Premises to indicate the particular unit, occupancy, or load supplied by it. [¶] a. RESIDENTIAL. For revenue billing, electric service shall be individually metered to every residential unit in a residential building or group of buildings or other development with multiple tenants such as, but not limited to, apartment buildings, mobile home parks, etc., except as may be specified in Rule 18 and applicable rate schedules." (Emphasis added.)].)

For these reasons, the facts alleged by Plaintiff do not meet the standard to demonstrate an abuse of discretion under *Sacks, supra*, nor do they demonstrate that Defendants misapplied the RMC.

The demurrers to the second and third causes of action are **SUSTAINED**.

D. Failure to Perform Mandatory Duty, Govt. Code § 815.6 (4th C/A)

Plaintiff asserts that this cause of action "alleges that Defendants failed to perform mandatory, ministerial duties required by law, including duties to issue a written decision and provide required findings, and to provide a procedure for administrative review. Plaintiff alleges that Defendants' refusal to issue a written denial or cancellation letter, and their shifting instructions regarding appeal, prevented Plaintiff from exhausting administrative remedies and rendered further administrative remedies unavailable or futile. Plaintiff seeks relief for Defendants' failure to perform required duties in connection with the condo/TH conversion application."

Government Code section 815.6 provides, "Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty." (Govt. Code § 815.6 [emphasis added].) A statutory cause of action must be pled with specificity. (*Baskin, supra*, 25 Cal.App.5th at 207; *Fischer, supra*, 214 Cal.App.3d at 604.)

"The elements of liability under Government Code section 815.6 are as follows: 'First and foremost, application of section 815.6 requires that the enactment at issue be obligatory, rather than merely discretionary or permissive, in its directions to the public entity; it must require, rather than merely authorize or permit, that a particular action be taken or not taken. [Citation.] It is not enough, moreover, that the public entity or officer have been under an obligation to perform a function if the function itself involves the exercise of discretion. [Citation.]' [Citation omitted, italics in original.] Courts have construed this first prong rather strictly, finding a mandatory duty only if the enactment 'affirmatively imposes the duty and provides implementing guidelines.' [Citations omitted.] [¶] 'Second, but equally important, section 815.6 requires that the mandatory duty be "designed" to protect against the particular kind of injury the plaintiff suffered. The plaintiff must show the injury is " 'one of the consequences which the [enacting body] sought to prevent through imposing the alleged mandatory duty.' " [Citation.] . . . If these two prongs are met, the next question is whether the breach of the duty was a proximate cause of the plaintiff's injury. [Citations omitted.]" (*Guzman v. County of Monterey* (2009) 46 Cal.4th 887, 898 [quoting among others *Haggis v. City of Los Angeles* (2000) 22 Cal.4th 490, 498, 499].)

As in the case of Plaintiff's original complaint, Plaintiff does not cite any statute imposing an affirmative, mandatory, nondiscretionary duty on the City, and specifically a mandatory duty which is designed to protect against an injury Plaintiff is claiming he has suffered. To the extent Plaintiff alleges the mandatory duty is for the City to make a determination of his condominium conversion application, issue a written determination, and provide a pathway for appeal, Resolution 26-01 and the Notice of Action show that the City complied with that duty. Documents subject to judicial notice show he obtained the relief he contends is mandated and that he seeks as the relief on this cause of action.

To the extent Plaintiff alleges the mandatory duty is to approve his condominium conversion (or lot split) without requiring the three utility meters to be moved, Plaintiff has not alleged facts or cited law that the City had that mandatory duty; rather, applicable authority cited above shows approval of subdivisions with conditions is within the City's discretion. The provisions of PG&E Rule 16 attached as Exhibit M to the FAC appear to be incomplete, but in any event, Plaintiff has not alleged facts or cited law that shows they apply to a condominium project. (See FAC Exh. M, cited and quoted at length

above.)

The demurrer to the fourth cause of action for failure to perform a mandatory duty is **SUSTAINED**.

E. Declaratory Relief and Injunctive Relief (5th and 6th C/As)

Plaintiff alleges he is "seeking a judicial declaration regarding the applicable legal framework governing Plaintiff's condominium/townhouse (condo/TH) conversion application and Defendants' obligations to lawfully process the application and provide procedural due process." (FAC p. 46, ll. 3-8.) He "judicial declarations clarifying the parties' rights and duties regarding Plaintiff's condo/TH conversion application. Plaintiff seeks declarations regarding the legal framework governing the City's processing of a two-unit condo/TH conversion application, and Defendants' obligations to issue a written determination with findings and provide a meaningful opportunity for administrative appeal. Declaratory relief is sought to resolve the controversy over which standards apply and what procedures the City must follow," and in the prayer for relief, "a judicial declaration clarifying the municipal code provisions applicable to Plaintiff's condominium/townhouse (condo/TH) conversion application and Defendants' procedural obligations to issue a written determination and provide a meaningful opportunity for administrative appeal." (FAC pp. 48-49, and pp. 52-53.)

As to the injunctive relief cause of action, he seeks "an order enjoining Defendants from denying or obstructing processing of the application without a written decision, from recharacterizing the application mid-process without notice and standards, and from blocking Planning Commission review through inconsistent procedures," and specifically in the prayer, "injunctive relief enjoining Defendants from continuing unlawful practices, including denying or obstructing processing of condominium/townhouse (condo/TH) conversion applications without written decisions or findings and obstructing administrative appeals." (FAC p. 49 and p. 53.)

1. Declaratory Relief Not Proper

Defendants contend that an action for declaratory relief may not be maintained to challenge an agency's administrative decision, citing *Tejon, supra*, and *City of Pasadena v. Cohen* (2014) 228 Cal.App.4th 1461. The Court in *Tejon* explained that though declaratory relief may be appropriate to challenge the constitutionality of a statute or regulation, "[w]here, as here, the challenge is to a regulation's 'application to the lands of the complaining part[y], . . . the proper and sole remedy [is] administrative mandamus.' [Citations omitted.]" (*Tejon, supra*, 223 Cal.App.4th at 154-155 [concluding the demurrer to the declaratory relief claim properly sustained, "[b]ecause [plaintiff's] complaint and FAC improperly sought declaratory relief to review a purported administrative decision."].)

In *City of Pasadena, supra*, 228 Cal.App.4th 1461, the Court reversed the trial court's order granting a preliminary injunction on a declaratory relief claim. Citing the "settled" rule " 'that an action for declaratory relief is not appropriate to review an administrative decision.' [Citations omitted.]" The Court of Appeal explained that the trial court instead "could have simply denied injunctive relief and dismissed the action on this ground (with or without leave to amend), or it could have construed the City's pleading as one seeking traditional mandate and (if it has adequately stated the City's entitlement to such relief) ruled on the merits of the challenge to the administrative determination [citations omitted], and issued the writ or denied the petition." (*Id.* at 1467 [emphasis added].)

The declaratory relief cause of action reiterates that Plaintiff is seeking a declaration regarding Defendant's obligation to make a written determination on his application with findings and with an opportunity for review, like the relief sought in the first cause of action for writ of mandate. The existence of the Resolution No. 26-01 shows that Planning Commission review was no longer "blocked" but in fact occurred, and a Notice of Action with appeal information was issued. (Def. RJN Exhs. 12, 13.) The declaratory relief cause of action under the authorities cited above is not the appropriate means to review an administrative decision, i.e., the merits of the Planning Commission determination in Resolution 26-01. For these reasons, the declaratory relief claim does not state a cause of action.

2. Injunctive Relief

The Court concurs in Defendants' position that injunctive relief is a remedy and not a separate cause of action. "Injunctive relief is a remedy, not a cause of action. [Citations omitted.] A cause of action must exist before a court may grant a request for injunctive relief. [Citations omitted.]" (*Allen v. City of Sacramento* (2015) 234 Cal. App. 4th 41, 65 [finding trial court could properly sustain demurrer to injunctive relief cause of action on that ground]; *Camp v. Board of Supervisors* (1981) 123 Cal.App.3d 334, 356 [same].) For the reasons stated above, the FAC in its entirety does not state a cause of action because Plaintiff does not make allegations demonstrating, in light of the January 15, 2026 Resolution 26-01 and Notice of Action, that Plaintiff has exhausted his administrative remedies and that judicial review is now appropriate. Plaintiff's specific causes of action also fail to allege facts to state those substantive claims. Without an underlying viable cause of action, the remedy of injunctive relief is not available.

Conclusion and Ruling

The Court **SUSTAINS** Defendants' demurrer to the FAC in its entirety and to each cause of action. The Court grants Plaintiff **LEAVE TO AMEND** the FAC for Plaintiff to allege facts demonstrating he has exhausted his administrative remedies based on the Planning Commission determination reflected in Resolution 26-01 and the Notice of Action, or facts showing that an exception to the requirement of exhaustion applies.

Given the Court's ruling allowing Plaintiff leave to amend to demonstrate exhaustion of administrative remedies, the Court **SUSTAINS WITH LEAVE TO AMEND** Defendants' demurrers to the first through fifth causes of action in the event that factual developments from the subsequent administrative proceedings, including the Planning Commission determination reflected in Resolution 26-01 and the Notice of Action and any appeal Plaintiff may have taken permit Plaintiff to allege additional facts to state these causes of action.

The Court **SUSTAINS WITHOUT LEAVE TO AMEND** Defendants' demurrer to the **sixth** cause of action for injunctive relief for the reasons stated. The ruling is without prejudice or limitation on Plaintiff's ability to seek injunctive relief as a remedy in any amended complaint if Plaintiff can allege a substantive cause of action for which injunctive relief may be granted as a remedy.

2. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: TOSCANO, DR. JOSEPH
TENTATIVE RULING:

Before the Court is a demurrer by defendant Joseph Toscano, M.D. to the second amended complaint. For the reasons set forth, the general demurrers to the first, second, and fourth causes of action are **SUSTAINED, WITHOUT LEAVE TO AMEND**; the general demurrer to the third cause of action is **SUSTAINED, WITH LEAVE TO AMEND**.

Background

Plaintiff Linda Williams alleges she was sustained injuries when she was admitted to San Ramon Regional Medical Center on April 20, 2024 and was given medication to which she was allergic. (Second Amended Complaint ("2AC") ¶¶ 17-25.) She has sued San Ramon Regional Medical Center (the "Medical Center"), Tenet Healthcare Corporation ("Tenet"), two doctors (Drs. Narendra K. Malani and Joseph Toscano), and two nurses (Nurses Judith Grove and Rene Ochoa, each RNs). In her operative 2AC, she alleges causes of action for professional negligence/medical malpractice (1st C/A against all defendants), negligence (2nd C/A against the Medical Center and Tenet), medical battery (3rd C/A against the Medical Center, the doctors, and the nurses), and negligent infliction of emotional distress (NIED, 4th C/A against all defendants). She alleges Dr. Toscano was "involved in" Plaintiff's care, treatment and medication decisions, among other actions. (2AC ¶ 27.)

All defendants have filed demurrers to the 2AC. All defendants other than Dr. Toscano have filed motions to strike portions of the 2AC. Drs. Malani and Toscano have filed joinders in the motion to strike filed by defendants the Medical Center, Tenet Healthcare, RN Grove, and RN Ochoa (collectively the "Medical Center Defendants"). All of the demurrers, motions to strike, and joinders are set for hearing concurrently this date.

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pled factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123 [citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318].) In determining whether the complaint states a claim for relief, the Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) The Court also considers matters of which the Court can properly take judicial notice. (*Carloss, supra*, 242 Cal.App.4th at 123.)

A general demurrer may be sustained when the facts alleged show the action is barred by the statute of limitations. (*Vaca v. Wachovia Mortgage Corp.* (2011) 198 Cal.App.4th 737, 746.) To sustain a demurrer based on the statute of limitations, however, it must "clearly and affirmatively" appear on the face of the complaint that the cause of action is barred, not that it might be barred. (*Committee v. Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232 [demurrer based on statute of limitations does not lie when the action may be,

but is not necessarily, barred].)

If a complaint fails to state a cause of action but there is a reasonable possibility of amendment to cure the deficiencies, then leave to amend must be granted. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 39.)

Notes on Plaintiff's Opposition

Plaintiff's opposition to the demurrer is single-spaced, which violates California Rule of Court, Rule 2.108, subdivision (1). The Court has exercised its discretion to consider the opposition in any event.

Plaintiff's opposition also includes a declaration by Plaintiff to which she attaches an "Exhibit A" which she states is a copy of a chronology of her "subsequent medical treatment and selected contemporaneous medical records maintained" by her treating providers. The Court does not consider evidence in ruling on a demurrer except matters subject to judicial notice. (*Carloss, supra*, 242 Cal.App.4th at 123; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) Though the Court will not consider the declaration and exhibits to the Williams Declaration to support the sufficiency of the allegations of the 2AC, the Court will consider the declaration as a further offer of proof as to what Plaintiff might be able to allege if the demurrer were sustained and leave to amend granted.

Defendant's Request for Judicial Notice

Defendant requests the Court take judicial notice of the original complaint filed August 7, 2025, the Court's order on the demurrers to the FAC, and Plaintiff's 2AC. The Court **GRANTS** the unopposed request, subject to the applicable limitations on judicial notice. (Evid. Code § 452(d); *StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice does not extend to the truth or proper interpretation of a pleading to the extent reasonably disputable]; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-115 [same]; *Sosinsky v. Grant* (1992) 6 Cal. App. 4th 1548, 1569 [judicial notice of prior order or judgment].)

Analysis

Dr. Toscano filed a general demurrer to the 2AC in its entirety on the ground the claims asserted are barred by the statute of limitations of Code of Civil Procedure section 340.5, and that the FAC is a sham pleading. All of the defendants assert generally similar arguments in their demurrers, arguing that Plaintiff's claims are all untimely under Code of Civil Procedure section 340.5 and that her new allegations in the 2AC contradict facts alleged in her original complaint. Nevertheless, the Court makes separate rulings on the demurrers that are tailored as appropriate to the specific defendant's demurrer.

A. Statute of Limitations Applicable to Medical Negligence, Negligence, and Negligent Infliction of Emotional Distress Claims

Code of Civil Procedure 340.5 states in pertinent part, "In an action for injury or death against a health care provider based upon such person's alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first." (Code Civ. Proc. § 340.5.) The statute defines professional negligence generally as "a

negligent act or omission to act by a health care provider in the rendering of professional services, which act or omission is the proximate cause of a personal injury or wrongful death." (Code Civ. Proc. § 340.5 subpart (2).)

Code of Civil Procedure section 364 requires a party to serve a Notice of Intent before commencing an action for medical negligence. (Code Civ. Proc. § 364(a) ["No action based upon the health care provider's professional negligence may be commenced unless the defendant has been given at least 90 days' prior notice of the intention to commence the action."].) The statute also provides, "If the notice is served within 90 days of the expiration of the applicable statute of limitations, the time for the commencement of the action shall be extended 90 days from the service of the notice." (Code Civ. Proc. § 364(d).)

Plaintiff alleges causes of action for professional negligence/medical malpractice (1st C/A), negligence (2nd C/A), and negligent infliction of emotional distress (4th C/A), all arising out of allegations regarding the rendition of medical treatment and related services by defendants. There appears to be no dispute among the parties that Code of Civil Procedure section 340.5 applies to those three causes of action.

The elements of negligence, including professional negligence or medical malpractice, are duty, breach of duty and causation. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) (*See also Flowers v. Torrance Memorial Hospital Medical Center* (1994) 8 Cal.4th 992, 995, 997-998 ["[W]e consider the distinction between 'ordinary' and 'professional' negligence and conclude that with respect to questions of substantive law they comprise essentially one form of action. Apart from statutory considerations, characterizing misfeasance as one type of negligence or the other generally only serves to define the standard of care applicable to the defendant's conduct."].)

Negligent infliction of emotional distress is not a tort separate from the tort of negligence. "We have repeatedly recognized that '[t]he negligent causing of emotional distress is not an independent tort, but the tort of negligence. [Citation.] The traditional elements of duty, breach of duty, causation, and damages apply. [¶] Whether a defendant owes a duty of care is a question of law. Its existence depends upon the foreseeability of the risk and a weighing of policy considerations for and against imposition of liability. [Citation.]" [Citations omitted.]" (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1072.) (*See also Marlene F. v. Affiliated Psychiatric Medical Clinic, Inc.* (1989) 48 Cal.3d 583, 588.) If a negligence cause of action is established, then damages for severe emotional distress may be recoverable based on the breach of duty owed to the plaintiff by the defendant. (*Marlene F., supra*, 48 Cal.3d at 590.) (*See also Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 984 ("Potter") [under California law, damages for emotional distress are recoverable only if the defendant has breached some other duty to the plaintiff].)

B. Accrual of Statute of Limitations, Delayed Discovery Allegations, and Sham Pleading Doctrine Applied to Negligence-Based Causes of Action

Plaintiff alleges after her admission to the Medical Center on April 20, 2024, she was given medication to which she was allergic and had a severe allergic reaction during her hospitalization. (2AC ¶¶ 1-3, 17-25.) Based on her allegations, all the essential elements of her cause of action were complete during her hospitalization, and unless tolled, the statute of limitations accrued when she sustained her injuries caused by the alleged negligent treatment. Plaintiff relies on the delayed discovery rule to

toll the accrual of her claims and to make her initial complaint timely.

1. Delayed Discovery Rule

" 'Generally speaking, a cause of action accrues at 'the time when the cause of action is complete with all of its elements.' [Citations omitted.] An important exception to the general rule of accrual is the 'discovery rule,' which postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action. [Citations omitted.]" (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806-807.) "[U]nder the delayed discovery rule, a cause of action accrues and the statute of limitations begins to run when the plaintiff has reason to suspect an injury and some wrongful cause, unless the plaintiff pleads and proves that a reasonable investigation at that time would not have revealed a factual basis for that particular cause of action. In that case, the statute of limitations for that cause of action will be tolled until such time as a reasonable investigation would have revealed its factual basis." (*Id.* at 803.)

"In order to rely on the discovery rule for delayed accrual of a cause of action, '[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.' [Citation omitted.]" In assessing the sufficiency of the allegations of delayed discovery, the court places the burden on the plaintiff to 'show diligence'; 'conclusory allegations will not withstand demurrer.' [Citation omitted.] [¶] [T]o employ the discovery rule to delay accrual of a cause of action, a potential plaintiff who suspects that an injury has been wrongfully caused must conduct a reasonable investigation of all potential causes of that injury. If such an investigation would have disclosed a factual basis for a cause of action, the statute of limitations begins to run on that cause of action when the investigation would have brought such information to light. In order to adequately allege facts supporting a theory of delayed discovery, the plaintiff must plead that, despite diligent investigation of the circumstances of the injury, he or she could not have reasonably discovered facts supporting the cause of action within the applicable statute of limitations period." (*Id.* at 808-809.)

"A plaintiff need not be aware of the specific 'facts' necessary to establish the claim; that is a process contemplated by pretrial discovery. Once the plaintiff has a suspicion of wrongdoing, and therefore an incentive to sue, she must decide whether to file suit or sit on her rights. So long as a suspicion exists, it is clear that the plaintiff must go find the facts; she cannot wait for the facts to find her." (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1111.)

2. Allegations Regarding Delayed Discovery in the 2AC

Plaintiff alleges she served Notices of Intent to sue on April 16, 2025. The complaint initiating this action was filed on August 7, 2025, more than 90 days after the notices were served and outside the 90-day tolling period provided in Code of Civil Procedure section 364. Unless the statute of limitations did not begin to run until on or after August 7, 2024, Plaintiff's complaint commencing this action is barred by the statute of limitations.

Plaintiff repeatedly alleges that during her hospitalization, which commenced April 20, 2024, she was medically compromised, unconscious, sedated, or experiencing a serious medical event. (2AC ¶¶ 33-35, 37.) In the 2AC, she alleges that she "first began to suspect" that "her injuries were connected to wrongful hospital care" after "observing unexplained bruising, experiencing continuing symptoms,

reviewing vague discharge-related information, and consulting with treating medical providers in the months following her return home." (2AC ¶ 38.)

She implicitly concedes she had some hospital records when she was discharged, but she alleges she did not have complete records (she describes 573 pages of records being produced in 2026, 2AC ¶¶ 44, 45), and she could not "meaningfully compare medication orders, medication administration records, allergy or warning information, discharge information, restraint-related information, and later produced records" until she reviewed later produced records. (2AC ¶¶ 36, 38, 39, 40.) She alleges she learned "additional restraint-related facts from Ms. Reed" who was at the hospital during "nearly all available visiting hours" and who "believed Plaintiff already knew those facts." (2AC ¶ 46 [emphasis added].) Plaintiff alleges the discovery materials and "later-learned restraint facts" "confirmed, clarified and expanded facts Plaintiff had previously suspected." (2AC ¶ 47 [emphasis added].) (See also 2AC ¶ 48 [alleging she "gradually discovered and reasonably suspected wrongful hospital care and medication related causation only after discharge, after observing unexplained bruising and continuing symptoms, reviewing vague and incomplete discharge-related information," among other things [emphasis added].])

Plaintiff does not allege that after she was discharged, she was unable to make inquiries of her husband and friend Ms. Reed, who was at the hospital during almost all visiting hours, regarding what occurred during her hospitalization. She does not allege she was not given any discharge-related paperwork when she was discharged from the hospital on April 22, 2024. She does not allege that any bruising or symptoms did not appear until months after her discharge such that she did not suspect injury or a wrongful cause until months later. She therefore does not allege facts showing that "despite diligent investigation of the injury" she could not have discovered facts supporting the wrongful cause within the applicable statute of limitations. Indeed, she clearly knew the facts by April 16, 2025 when she served her Code of Civil Procedure section 364 notices.

Paragraph 38 of the 2AC states Plaintiff "first began to suspect" her injuries "were connected to a wrongful" cause (wrongful hospital care) "after observing unexplained bruising, experiencing symptoms, reviewing vague discharge-related information, and consulting with treating medical providers in the months following her return home." (2AC ¶ 38.) The bruising, other symptoms, and "discharge-related information" must reasonably have been available to Plaintiff at or shortly after her discharge, such that based on these allegations, she began to suspect injury and a wrongful cause shortly after her discharge (*Fox, supra*, 35 Cal.4th at 803.)

Plaintiff does not allege specific facts showing when and how she discovered she was given improper medication, alleging only in the most general terms that her knowledge developed over some unspecified time period through her general observations, review of discharge-related information and consulting with physicians over an indeterminate time period. (*Fox, supra*, 35 Cal.4th at 808.) She also does not allege specific facts showing that she could not have discovered with reasonable diligence, such as communications with her husband and Ms. Reed, sufficient information to inform her she received improper medication and was restrained soon after she was released from the hospital. (*Id.*)

The allegations of the 2AC are insufficient to allege delayed discovery of her negligence-related claims under the above-cited standards so as to make the complaint timely filed within the statute of

limitations. The case law provides that the cause of action accrues and the statute of limitations commences to run under the delayed discovery rule when the plaintiff first suspects injury and a wrongful cause, not when the plaintiff has complete evidence documenting witnesses and the wrongful acts causing the injury. (See, e.g., 2AC ¶¶ 44, 45.) Knowledge of all witnesses, complete records, and a full investigation of all facts supporting her negligence-related claims is not required for the statute of limitations of Code of Civil Procedure section 340.5 to begin to run under *Fox*.

3. Application of the Sham Pleading Doctrine Based on Original Complaint

Even if the allegations of the 2AC were sufficient taken alone to allege delayed discovery to start the statute of limitations running at some vague time frame on or after August 7, 2024, Dr. Toscano raises the "sham pleading" doctrine, arguing that Plaintiff has made factual allegations in the 2AC that contradict or are inconsistent with her allegations in the original complaint to try to avoid the claims being barred by the statute of limitations. (*Larson v. UHS of Rancho Palm Springs* (2014) 230 Cal.App.4th 336, 343-344.) Related to the sham pleading doctrine is the "truthful pleading" doctrine. (*Cantu v. Resolution Trust Corp.* (1992) 4 Cal.App.4th 857, 877-878 [doctrine of "truthful pleading" precludes a party from avoiding a demurrer by suppressing facts that prove the pleading false].) (See also *Hendy v. Losse* (1991) 54 Cal.3d 723, 742-743 [explaining doctrines, stating they apply to both verified and unverified complaints, and affirming order sustaining demurrer without leave to amend where plaintiff alleged initially on information and belief that defendant was an employee and sought to amend to allege defendant was an independent contractor without demonstrating original allegation was "the result of inadvertence or mistake, or that he has since discovered a factual basis for alleging" defendant was an independent contractor]; *Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 425-427 [stating, among other things, "Under the sham pleading doctrine, plaintiffs are precluded from amending complaints to omit harmful allegations, without explanation, from previous complaints to avoid attacks raised in demurrers or motions for summary judgment. [Citation omitted.]" (Emphasis added.)].)

" 'Generally, after an amended pleading has been filed, courts will disregard the original pleading. [Citation.] [¶] However, an exception to this rule is found . . . where an amended complaint attempts to avoid defects set forth in a prior complaint by ignoring them. The court may examine the prior complaint to ascertain whether the amended complaint is merely a sham." [Citation.] . . . Moreover, any inconsistencies with prior pleadings must be explained; if the pleader fails to do so, the court may disregard the inconsistent allegations. [Citation.] Accordingly, a court is "not bound to accept as true allegations contrary to factual allegations in former pleading in the same case." [Citation.]' [Citations omitted.]" (*Larson, supra*, 139 Cal.App.4th at 343-344.) (See also *Nolte v. Cedars-Sinai Medical Center* (2015) 236 Cal.App.4th 1401, 1406 [" 'A plaintiff may not avoid a demurrer by pleading facts or positions in an amended complaint that contradict the facts pleaded in the original complaint or by suppressing facts which prove the pleaded facts false.' [Citation omitted.]"].)

The Court agrees that the truthful pleading/sham pleading doctrines apply here. Plaintiff has notably omitted harmful allegations made in her original complaint, which she made under penalty of perjury (Compl. Exh. A, pp. 42-43), including the date she was discharged (April 22, 2024), the fact that she was conscious and aware as of midday on April 22, 2024 when she was discharged, that she observed bruising on her wrists and arms when she was discharged and photographed the bruising when she returned to Tennessee the next day, and that she experienced the symptoms of an allergic reaction to

acetaminophen for several days after she returned home. (Compl. Exh. A ¶ 40, p. 24, Exh. 2 pp. 43-49.) Plaintiff does not explain or justify her omission of those facts alleged in her original complaint when she filed the 2AC. (*Deveny, supra*, 139 Cal.App.4th at 426.)

The Court also agrees with Defendant that Plaintiff's current allegations of delayed discovery in her 2AC are contradicted by, and inconsistent with, her factual allegations in her original complaint regarding when she had information sufficient for her to suspect she had been injured and that the injury was the result of a wrongful cause, namely, administration of inappropriate medications and restraints. For example, in the 2AC she alleges she began to suspect "wrongful hospital care after observing unexplained bruising" and suggests at the end of the paragraph her suspicion arose "in the months following her return home." (2AC ¶ 38.) In her original complaint, she alleged her first memory of her hospitalization was midday on Monday, April 22, 2024, and she alleged she was on a FaceTime call with her husband when a nurse came in to stop the blood pressure medication she was being administered. (Compl. Exh. A, Exh. 2 pp. 48-49.) She alleged, "When I left the hospital I had multiple IV sites and multiple unexplained bruises. I had severe allergic reaction symptoms from the Acetaminophen for several days after leaving the hospital making it impossible for me to eat solid food (I had pictures taken again of the trauma as soon as I returned back to TN the next day) **See Exhibit 3.**" (Compl. Exh. A, Exh. 2 p. 49 [emphasis added].) (*See also* Compl., Exh. A ¶ 40, p. 24 [left hospital with unexplained bruises].)

In the 2AC she alleges she was consulting with her medical providers during "the months after" she returned home, but she alleges she did not have her "complete chart" and other medical records. (2AC ¶¶ 36, 38.) In her original complaint, she provides details that undermine those allegations, stating her treatment for "PTSD" and other symptoms from the alleged improper medical care at the hospital from April 20-22, 2024 "is being coordinated by my primary physician who was outraged when she read the 92-page Hospital report." (Compl. Exh. A, Exh. 2 p. 49 [emphasis added].) Plaintiff in the 2AC alleges that she received the 573-page production of medical records in 2026 (2AC ¶¶ 44, 45) and that the "original discharge paperwork available to her did not disclose or meaningfully identify Mr. Williams or Ms. Reed as material participants or witnesses." (2AC ¶ 45.) However, Plaintiff specifically alleged in her original complaint she was told what occurred during her hospitalization by her husband, her friend Heather [Reed], her friend's sister Merrie Reed, and the 92-page report from San Ramon Regional Medical Center, a copy of which appears to be attached to her original complaint. (Compl. Exh. A, Exh. 2 p. 45, and pp. 93-187.) Indeed, her original complaint shows she filed complaints with the medical board about her treatment by Drs. Toscano and Malani on June 10, 2024. (Compl. pp. 190-195.)

Plaintiff alleges no specific facts showing that beginning promptly after her discharge and return to Tennessee, when she observed bruising on her arms and wrists according to her original complaint, she was unable to investigate information regarding the events of her hospitalization through discussions with Mr. Williams (her husband) or Ms. Reed (her friend who was at the hospital during almost all visiting hours). (*Compare* 2AC ¶¶ 45, 46 to Compl. Exh. A, Exh. 2 pp. 44-49 [describing at length both her husband and Ms. Reed telling hospital and staff not to administer medications without approval of one of them, repeated instructions by husband and Ms. Reed to stop giving Plaintiff medication and giving the defendants a list of medications not to give, and alleging that her husband and Ms. Reed told her what happened during her hospitalization].) To the contrary, her prior

complaint shows that she was informed of what happened during her hospitalization by her husband and friend and that the 92-page hospital report had information sufficient for her physician to be "outraged" by her treatment. The allegations of the original complaint show her husband at a minimum was aware of the acts and omissions during her hospitalization that are the basis of her claims and that Plaintiff was aware at the end of her hospitalization.

Though the Williams Declaration and the attached Exhibit A is evidence outside the 2AC and cannot make the 2AC sufficient if its allegations fail, Williams asks for leave to amend in her opposition if the demurrer were sustained. The Court has considered Exhibit A to her declaration for that purpose. She argues that the excerpts of the medical records show an "increasing understanding" and "realization." Instead, they show that as of no later than May 13, 2024, she had sufficient suspicion of her injury and its wrongful cause for the statute of limitations to have accrued. The Court finds the exhibit reinforces Plaintiff's knowledge of her injury and the wrongful cause shortly after her discharge. Specifically, a note in the excerpts of medical records show that as of May 13, 2024, Plaintiff had informed her doctor that she was treated with propofol in the hospital to which she is allergic and that she suspected she was restrained in the hospital based on bruising on her arms and wrist. (Williams Decl. re Opp. Exh. A, entry dated 5/13/2024 PDF pp. 14-15.) These facts further support her knowledge of the factual basis of her claims by no later than May 2024 and undermine her vague allegations that her discovery of her claim developed sometime on or after August 7, 2024, which would be necessary to make her August 7, 2025 complaint timely. Again, these facts are considered only on the issue of the ability to amend to avoid the bar of the statute of limitations.

4. Conclusion as to Statute of Limitations on Three Negligence-Based Causes of Action

The facts alleged in the 2AC regarding delayed discovery are insufficient to state specific facts showing that she did not suspect her injuries and their wrongful cause until months after her discharge under the requirements of *Fox*. Further, Defendant has shown that the factual allegations of the 2AC regarding when she discovered or suspected her injury and its wrongful cause are inconsistent with and contradicted by facts alleged in her original complaint, such that the sham pleading doctrine applies. Plaintiff has not demonstrated that she can allege facts to truthfully plead a claim for delayed discovery that would save her negligence-based causes of action from being barred by the statute of limitations of Code of Civil Procedure section 340.5. Her own evidence arguably offered to support her ability to amend shows that she had knowledge or at least suspicion of her injuries and their wrongful cause as of May 13, 2024. The complaint initiating the action was filed more than one year after that date, and more than 90 days after she served her Notices of Intent to Sue under Code of Civil Procedure section 364.

The claims in the first, second, and fourth causes of action are barred by the statute of limitations of Code of Civil Procedure section 340.5. The general demurrers to the first, second, and fourth causes of action are **SUSTAINED, WITHOUT LEAVE TO AMEND.**

C. Medical Battery Claim (3rd C/A)

Plaintiff also alleges a claim for medical battery (3rd C/A). Battery, and specifically medical battery, is an intentional tort. (*Piedra v. Dugan* (2004) 123 Cal. App. 4th 1483, 1499.) For a claim of battery, a two-year statute of limitations applies under Code of Civil Procedure section 335.1. (Code Civ. Proc. §

335.1 ["Within two years: An action for assault, battery, or injury to, or for the death of, an individual caused by the wrongful act or neglect of another."]; *Samantha B. v. Aurora Vista Del Mar, LLC* (2022) 77 Cal.App.5th 85, 96; *Benun v. Superior Court* (2004) 123 Cal.App.4th 113, 126.)

"The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching." (*So v. Shin* (2013) 212 Cal.App.4th 652, 669.) "A medical battery occurs where 'a doctor obtains consent of the patient to perform one type of treatment and subsequently performs a substantially different treatment for which consent was not obtained.' " (*Id.*)

The Court interprets Plaintiff's allegations as attempting to allege medical battery based on conditional consent. (2AC ¶¶ 68-76.) " 'There are three elements to a claim for medical battery under a violation of conditional consent: the patient must show his consent was conditional; the doctor intentionally violated the condition while providing treatment; and the patient suffered harm as a result of the doctor's violation of the condition. [Citation.]' [Citation omitted.]" (*Piedra v. Dugan* (2004) 123 Cal. App. 4th 1483, 1497-1498 [quoting *Conte v. Girard Orthopaedic Surgeons Medical Group, Inc.* (2003) 107 Cal.App.4th 1260, 1269].) "[A] claim for battery against a doctor as a violation of conditional consent requires proof the doctor intentionally violated the condition placed on the patient's consent. [Citation omitted.]" (*Id.* at 1499 [emphasis added].)

Notwithstanding the title of the cause of action as "medical battery," the determination of whether the one-year statute of limitations of Code of Civil Procedure section 340.5 for medical negligence applies depends on the gravamen of the cause of action. "[W]hen a plaintiff asserts a claim against a health care provider on a legal theory other than professional negligence, courts must determine whether the claim is nonetheless based on the health care provider's professional negligence, which would require application of MICRA. [Citations omitted.].) To make that determination, courts must examine not only the legal theory alleged, but also the nature of the health care provider's alleged conduct and the legislative history of the MICRA provision at issue. [Citations omitted.] When . . . the question presented concerns which limitations period applies, courts also must focus on the nature or gravamen of the claim, not the label or form of action the plaintiff selects. [Citations omitted.]" (*Larson, supra*, 230 Cal.App.4th at 347.)

In *Larson, supra*, 230 Cal.App.4th 336, the Court held that the statute of limitations of Code of Civil Procedure section 340.5 applied to the plaintiff's medical battery claim. The Court explained, "Although Larson labels his claims as intentional torts for battery and intentional infliction of emotional distress, the operative complaint's factual allegations, when read in conjunction with Larson's complaints in the Earlier Action, reveal Larson's claims are based on professional negligence within the meaning of section 340.5. Indeed, Larson alleges Shuman was the anesthesiologist for his surgery and injured Larson by forcefully grabbing and twisting his arm while conducting a preoperative checkup, and by prying open Larson's mouth and violently punching, lifting, and pushing Larson's face as he put on the mask to administer anesthesia. These allegations challenge the manner in which Shuman rendered the professional health care services he was hired to perform; they do not allege intentional torts committed for an ulterior purpose." (*Id.* at 351 [emphasis added].)

Plaintiff alleges that "to the extent any consent was obtained" from her or her family or authorized persons, it was provided "if at all" and limited to medically appropriate medications, and that there was no consent to "the administration of medications that were contraindicated, restricted, documented as unsafe for Plaintiff, or otherwise contrary to medication warnings, allergy-related information, adverse reaction history, contraindications, and 'Do Not Give' restrictions known or reasonable knowable to Defendants." (2AC ¶ 70.) (*See also* ¶¶ 18 ["Defendants had access to information" concerning Plaintiff's medication allergies], 19 ["medication-related warnings and restrictions were communicated" and medication restrictions were "known or knowable"], 25 ["Defendants' acts and omissions were not isolated clerical errors, but involved failures in medical decision-making, nursing care, communication, chart review, medication administration, patient safety, and hospital systems." (emphasis added)], 69, 71-73.) She alleges that the Defendants "intentionally performed, authorized, ordered, directed, permitted, administered, and/or caused the administration of medication related treatment to Plaintiff." (2AC ¶¶ 70, 72.)

She does not allege that Defendant "intentionally violated the condition placed on the patient's consent" which is required to state a claim for medical battery. (*Piedra, supra*, 123 Cal.App.4th at 1499 [emphasis added].) As alleged, the Court concludes the medical battery claim alleges only professional negligence, such that the statute of limitations of Code of Civil Procedure section 340.5 applies. The claim is untimely as subject to that statute for the reasons set forth above, and the delayed discovery rule does not apply to make the claim timely as explained in connection with the negligence-based claims.

Defendant has asked the Court to review Plaintiff's original complaint in connection with the demurrer to the 2AC in the context of the sham pleading doctrine. Reviewing the original complaint, with statements in the attachment to the original complaint made by Williams under penalty of perjury, Plaintiff alleged that (a) both her husband and her friend Ms. Reed repeatedly informed medical staff treating her that she had severe allergies to medications, (b) a Do Not Give medication list was provided to defendants, and (c) while Plaintiff was incapacitated, her husband in particular objected to the medications Plaintiff was being given and instructed defendants to cease medicating her. (Compl., Exh. A, Exh. 2, pp. 44-49.)

The allegations detailed in the original complaint in this regard are not present in the 2AC. The allegations in the original complaint suggest, however, that Plaintiff may be able to allege facts sufficient to state a medical battery claim based on conditional consent to treat her but not to give her specific medications to which she was allergic, that one or more of the defendants were informed of her allergies and instructed by her family and/or friend not to give specific medications, but that she was nevertheless intentionally administered such medications in violation of their conditional consent. Plaintiff filed her initial complaint within two years after her hospitalization, treatment, and discharge, which would make a medical battery claim timely under Code of Civil Procedure section 335.1. Where there is a reasonable possibility that a complaint may be amended to cure the deficiencies, then leave to amend must be granted. (*Quelimane Co., supra*, 19 Cal.4th at 39.)

The general demurrer to the third cause of action for medical battery is therefore **SUSTAINED, WITH LEAVE TO AMEND.**

3. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: MALANI, DR. NARENDRA K
TENTATIVE RULING:

Before the Court is a demurrer by defendant Narenda K. Malani, M.D. to the second amended complaint. For the reasons set forth, the general demurrers to the first, second, and fourth causes of action are **SUSTAINED, WITHOUT LEAVE TO AMEND**; the general demurrer to the third cause of action is **SUSTAINED, WITH LEAVE TO AMEND**.

Background

Plaintiff Linda Williams alleges she was sustained injuries when she was admitted to San Ramon Regional Medical Center on April 20, 2024 and was given medication to which she was allergic. (Second Amended Complaint ("2AC") ¶¶ 17-25.) She has sued San Ramon Regional Medical Center (the "Medical Center"), Tenet Healthcare Corporation ("Tenet"), two doctors (Drs. Narenda K. Malani and Joseph Toscano), and two nurses (Nurses Judith Grove and Rene Ochoa, each RNs). In her operative 2AC, she alleges causes of action for professional negligence/medical malpractice (1st C/A against all defendants), negligence (2nd C/A against the Medical Center and Tenet), medical battery (3rd C/A against the Medical Center, the doctors, and the nurses), and negligent infliction of emotional distress (NIED, 4th C/A against all defendants). She alleges Dr. Malani was "involved in" Plaintiff's care, treatment and medication decisions, among other actions. (2AC ¶ 27.)

All defendants have filed demurrers to the 2AC. All defendants other than Dr. Toscano have filed motions to strike portions of the 2AC. Drs. Malani and Toscano have filed joinders in the motion to strike filed by defendants the Medical Center, Tenet Healthcare, RN Grove, and RN Ochoa (collectively the "Medical Center Defendants"). All of the demurrers, motions to strike, and joinders are set for hearing concurrently this date.

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pled factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123 [citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318].) In determining whether the complaint states a claim for relief, the Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) The Court also considers matters of which the Court can properly take judicial notice. (*Carloss, supra*, 242 Cal.App.4th at 123.)

A general demurrer may be sustained when the facts alleged show the action is barred by the statute of limitations. (*Vaca v. Wachovia Mortgage Corp.* (2011) 198 Cal.App.4th 737, 746.) To sustain a demurrer based on the statute of limitations, however, it must "clearly and affirmatively" appear on the face of the complaint that the cause of action is barred, not that it might be barred. (*Committee v. Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232 [demurrer based on statute of limitations does not lie when the action may be,

but is not necessarily, barred].)

If a complaint fails to state a cause of action but there is a reasonable possibility of amendment to cure the deficiencies, then leave to amend must be granted. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 39.)

Notes on Plaintiff's Opposition

The conclusion in Plaintiff's opposition to the demurrer appears to be single-spaced, which violates California Rule of Court, Rule 2.108, subdivision (1). The Court has exercised its discretion to consider the opposition in any event.

Plaintiff's opposition also includes a declaration by Plaintiff to which she attaches an "Exhibit A" which she states is a copy of a chronology of her "subsequent medical treatment and selected contemporaneous medical records maintained" by her treating providers. The Court does not consider evidence in ruling on a demurrer except matters subject to judicial notice. (*Carloss, supra*, 242 Cal.App.4th at 123; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) Though the Court does not consider the declaration and exhibit to the Williams Declaration to support the sufficiency of the allegations of the 2AC, the Court will consider the declaration as a further offer of proof as to what Plaintiff might be able to allege if the demurrer were sustained and leave to amend granted.

Analysis

Dr. Malani has generally demurred to each of the causes of action of the 2AC on the ground that they are barred by the statute of limitations. Dr. Malani argues that the allegations of delayed discovery added in the 2AC are legally insufficient in light of Plaintiff's conflicting allegations in her original complaint which show that she had facts sufficient for her to know of her injuries and suspect their wrongful cause in or about April 22, 2024 when she was discharged from the hospital. All of the defendants assert generally similar arguments in their demurrers that Plaintiff's claims are all untimely under Code of Civil Procedure section 340.5 and that her new allegations in the 2AC contradict facts alleged in her original complaint. Nevertheless, the Court makes separate rulings on the demurrers that are tailored as appropriate to the specific defendant's demurrer.

A. Statute of Limitations Applicable to Medical Negligence, Negligence, and Negligent Infliction of Emotional Distress Claims

Code of Civil Procedure 340.5 states in pertinent part, "In an action for injury or death against a health care provider based upon such person's alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first." (Code Civ. Proc. § 340.5.) The statute defines professional negligence generally as "a negligent act or omission to act by a health care provider in the rendering of professional services, which act or omission is the proximate cause of a personal injury or wrongful death." (Code Civ. Proc. § 340.5 subpart (2).)

Code of Civil Procedure section 364 requires a party to serve a Notice of Intent before commencing an action for medical negligence. (Code Civ. Proc. § 364(a) ["No action based upon the health care provider's professional negligence may be commenced unless the defendant has been given at least

90 days' prior notice of the intention to commence the action.".) The statute also provides, "If the notice is served within 90 days of the expiration of the applicable statute of limitations, the time for the commencement of the action shall be extended 90 days from the service of the notice." (Code Civ. Proc. § 364(d).)

Plaintiff alleges causes of action for professional negligence/medical malpractice (1st C/A), negligence (2nd C/A), and negligent infliction of emotional distress (4th C/A) all arising out of allegations regarding the rendition of medical treatment and related services by defendants. There appears to be no dispute among the parties that Code of Civil Procedure section 340.5 applies to those three causes of action.

The elements of negligence, including professional negligence or medical malpractice, are duty, breach of duty and causation. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) (*See also Flowers v. Torrance Memorial Hospital Medical Center* (1994) 8 Cal.4th 992, 995, 997-998 ["[W]e consider the distinction between 'ordinary' and 'professional' negligence and conclude that with respect to questions of substantive law they comprise essentially one form of action. Apart from statutory considerations, characterizing misfeasance as one type of negligence or the other generally only serves to define the standard of care applicable to the defendant's conduct."].)

Negligent infliction of emotional distress is not a tort separate from the tort of negligence. "We have repeatedly recognized that '[t]he negligent causing of emotional distress is not an independent tort, but the tort of negligence. [Citation.] The traditional elements of duty, breach of duty, causation, and damages apply. [¶] Whether a defendant owes a duty of care is a question of law. Its existence depends upon the foreseeability of the risk and a weighing of policy considerations for and against imposition of liability. [Citation.].' [Citations omitted.]" (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1072.) (*See also Marlene F. v. Affiliated Psychiatric Medical Clinic, Inc.* (1989) 48 Cal.3d 583, 588.) If a negligence cause of action is established, then damages for severe emotional distress may be recoverable based on the breach of duty owed to the plaintiff by the defendant. (*Marlene F., supra*, 48 Cal.3d at 590.) (*See also Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 984 ("Potter") [under California law, damages for emotional distress are recoverable only if the defendant has breached some other duty to the plaintiff].)

B. Accrual of Statute of Limitations, Sham Pleading Doctrine and Delayed Discovery Rule Applied to Negligence Causes of Action

Plaintiff alleges after her admission to the Medical Center on April 20, 2024, she was given medication to which she was allergic and had a severe allergic reaction during her hospitalization. (2AC ¶¶ 1-3, 17-25.) Based on her allegations, all the essential elements of her cause of action were complete during her hospitalization, and unless tolled, the statute of limitations accrued when she sustained her injuries caused by the alleged negligent treatment. Plaintiff relies on the delayed discovery rule to toll the accrual of her claims and to make her initial complaint timely.

1. Truthful Pleading/Sham Pleading Doctrines

Dr. Malani argues the "sham pleading" doctrine, asserting that Plaintiff has made factual allegations in the 2AC that contradict or are inconsistent with her allegations in the original complaint to try to avoid the claims being barred by the statute of limitations. *Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 425-427 [stating, among other things, "Under the sham pleading doctrine, plaintiffs

are precluded from amending complaints to omit harmful allegations, without explanation, from previous complaints to avoid attacks raised in demurrers or motions for summary judgment. [Citation omitted.] (Emphasis added.) Related to the sham pleading doctrine is the "truthful pleading" doctrine. (*Cantu v. Resolution Trust Corp.* (1992) 4 Cal.App.4th 857, 877-878 [doctrine of "truthful pleading" precludes a party from avoiding a demurrer by suppressing facts that prove the pleading false].) (*See also Hendy v. Losse* (1991) 54 Cal.3d 723, 742-743 [explaining doctrines, stating they apply to both verified and unverified complaints, and affirming order sustaining demurrer without leave to amend where plaintiff alleged initially on information and belief that defendant was an employee and sought to amend to allege defendant was an independent contractor without demonstrating original allegation was "the result of inadvertence or mistake, or that he has since discovered a factual basis for alleging" defendant was an independent contractor].)

" 'Generally, after an amended pleading has been filed, courts will disregard the original pleading. [Citation.] [¶] However, an exception to this rule is found . . . where an amended complaint attempts to avoid defects set forth in a prior complaint by ignoring them. The court may examine the prior complaint to ascertain whether the amended complaint is merely a sham.' [Citation.] . . . Moreover, any inconsistencies with prior pleadings must be explained; if the pleader fails to do so, the court may disregard the inconsistent allegations. [Citation.] Accordingly, a court is "not bound to accept as true allegations contrary to factual allegations in former pleading in the same case." [Citation.]' [Citations omitted.]" (*Larson v. UHS of Rancho Palm Springs* (2014) 230 Cal.App.4th 336, 343-344.) (*See also Nolte v. Cedars-Sinai Medical Center* (2015) 236 Cal.App.4th 1401, 1406 [" 'A plaintiff may not avoid a demurrer by pleading facts or positions in an amended complaint that contradict the facts pleaded in the original complaint or by suppressing facts which prove the pleaded facts false.' [Citation omitted.]"]].)

The Court agrees that the truthful pleading/sham pleading doctrines apply here. Plaintiff has notably omitted harmful allegations made in her original complaint, which she made under penalty of perjury (Compl. Exh. A, pp. 42-43), including the date the statute of limitations was to expire was April 20, 2025, the date she was discharged (April 22, 2024), the fact that she was conscious and aware as of midday on April 22, 2024 when she was discharged, that she observed bruising on her wrists and arms when she was discharged and photographed the bruising when she returned to Tennessee the next day, and that she experienced the symptoms of an allergic reaction to acetaminophen for several days after she returned home. (Compl. Exh. A ¶ 20 at p. 22, ¶ 40 at p. 24, Exh. 2 pp. 43-49.) Plaintiff does not explain or justify her omission of those facts alleged in her original complaint when she filed the 2AC. (*Deveny, supra*, 139 Cal.App.4th at 426.)

The Court also agrees with Defendant that Plaintiff's current allegations are contradicted by, and inconsistent with, her factual allegations in her original complaint regarding when she had information sufficient for her to suspect she had been injured and that the injury was the result of a wrongful cause, namely, administration of inappropriate medications. For example, in the 2AC she alleges she began to suspect "wrongful hospital care after observing unexplained bruising" and suggests at the end of the paragraph her suspicion arose "in the months following her return home." (2AC ¶ 38.) In her original complaint, she alleged her first memory of her hospitalization was midday on Monday, April 22, 2024, and she alleged she was on a FaceTime call with her husband when a nurse came in to stop the blood pressure medication she was being administered. (Compl. Exh. A,

Exh. 2 pp. 48-49.) She alleged, "When I left the hospital I had multiple IV sites and multiple unexplained bruises. I had severe allergic reaction symptoms from the Acetaminophen for several days after leaving the hospital making it impossible for me to eat solid food (I had pictures taken again of the trauma as soon as I returned back to TN the next day) **See Exhibit 3.**" (Compl. Exh. A, Exh. 2 p. 49 [emphasis added].) (See also Compl., Exh. A ¶ 40, p. 24 [left hospital with unexplained bruises].)

Dr. Malani highlights in particular the multiple pictures Plaintiff had taken during the time frame of April 22 and April 24, 2024 showing bruising and physical injuries she alleges she sustained as a result of her treatment by defendants. (Compl. pp. 52-81.) The allegations and photographs demonstrate her knowledge of her injuries shortly after her discharge. The pictures in some instances include descriptions of what Plaintiff contends the photos depict, including "unexplained bruising." (See, e.g., Compl. p. 55.) She has alleged in the 2AC that her unexplained bruising was a basis for her suspecting "her injuries were connected to wrongful hospital care," which supports her awareness of facts giving rise to her claim as of the dates of the photos attached to her original complaint. (2AC ¶ 38.)

In the 2AC she alleges she was consulting with her medical providers during the "months after" she returned home, but she alleges she did not have her "complete chart" and other medical records at the time of her hospitalization. (2AC ¶¶ 36, 38.) In her original complaint, she provides details that undermine those allegations, stating her treatment for "PTSD" and other symptoms from the alleged improper medical care at the hospital from April 20-22, 2024 "is being coordinated by my primary physician who was outraged when she read the 92-page Hospital report." (Compl. Exh. A, Exh. 2 p. 49 [emphasis added].) Plaintiff in the 2AC alleges that she received the 573-page production of medical records in 2026 (2AC ¶¶ 44, 45) and that the "original discharge paperwork available to her did not disclose or meaningfully identify Mr. Williams or Ms. Reed as material participants or witnesses." (2AC ¶ 45.) However, Plaintiff specifically alleged in her original complaint she was told what occurred during her hospitalization by her husband, her friend Heather [Reed], her friend's sister Merrie Reed, and the 92-page report from San Ramon Regional Medical Center, a copy of which appears to be attached to her original complaint. (Compl. Exh. A, Exh. 2 p. 45, and pp. 93-187.) Indeed, her original complaint shows she filed complaints with the medical board about her treatment on June 10, 2024. (Compl. pp. 190-195.)

2. Delayed Discovery Rule

" 'Generally speaking, a cause of action accrues at 'the time when the cause of action is complete with all of its elements.' [Citations omitted.] An important exception to the general rule of accrual is the 'discovery rule,' which postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action. [Citations omitted.]" (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806-807.) "[U]nder the delayed discovery rule, a cause of action accrues and the statute of limitations begins to run when the plaintiff has reason to suspect an injury and some wrongful cause, unless the plaintiff pleads and proves that a reasonable investigation at that time would not have revealed a factual basis for that particular cause of action. In that case, the statute of limitations for that cause of action will be tolled until such time as a reasonable investigation would have revealed its factual basis." (*Id.* at 803.)

"In order to rely on the discovery rule for delayed accrual of a cause of action, '[a] plaintiff whose

complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.' [Citation omitted.]" In assessing the sufficiency of the allegations of delayed discovery, the court places the burden on the plaintiff to 'show diligence'; 'conclusory allegations will not withstand demurrer.' [Citation omitted.] [¶] [T]o employ the discovery rule to delay accrual of a cause of action, a potential plaintiff who suspects that an injury has been wrongfully caused must conduct a reasonable investigation of all potential causes of that injury. If such an investigation would have disclosed a factual basis for a cause of action, the statute of limitations begins to run on that cause of action when the investigation would have brought such information to light. In order to adequately allege facts supporting a theory of delayed discovery, the plaintiff must plead that, despite diligent investigation of the circumstances of the injury, he or she could not have reasonably discovered facts supporting the cause of action within the applicable statute of limitations period." (*Id.* at 808-809.)

" 'A plaintiff need not be aware of the specific "facts" necessary to establish the claim; that is a process contemplated by pretrial discovery. Once the plaintiff has a suspicion of wrongdoing, and therefore an incentive to sue, she must decide to file suit or sit on her rights. So long as a suspicion exists, it is clear that the plaintiff must go find the facts; she cannot wait for the facts to find her.' [Citation omitted.] 'Possession of "presumptive" as well as "actual" knowledge will commence the running of the statute.' [Citation omitted.]" (Henry v. Clifford (1995) 32 Cal. App. 4th 315, 323 [quoting *Jolly v. Eli Lilly & Co.* (1988) 44 Cal. 3d 1103, 1111 and *Sanchez v. South Hoover Hospital* (1976) 18 Cal. 3d 93, 101, respectively].)

Plaintiff alleges she served Notices of Intent to sue on April 16, 2025. The complaint initiating this action was filed on August 7, 2025, more than 90 days after the notices were served and outside the 90-day tolling period provided in Code of Civil Procedure section 364. Unless the statute of limitations did not begin to run until on or after August 7, 2024, Plaintiff's complaint commencing this action is barred by the statute of limitations.

Paragraph 38 of the 2AC states Plaintiff "first began to suspect" her injuries "were connected to a wrongful" cause (wrongful hospital care) "after observing unexplained bruising, experiencing symptoms, reviewing vague discharge-related information, and consulting with treating medical providers in the months following her return home." (2AC ¶ 38.) The bruising, other symptoms, and "discharge-related information" must reasonably have been available to Plaintiff at or shortly after her discharge, such that based on these allegations, she began to suspect injury and a wrongful cause shortly after her discharge (*Fox, supra*, 35 Cal.4th at 803.)

Plaintiff repeatedly alleges that during her hospitalization, which commenced April 20, 2024, she was medically compromised, unconscious, sedated, or experiencing a serious medical event. (2AC ¶¶ 33-35, 37.) She implicitly concedes she had some hospital records when she was discharged (2AC ¶ 38), but she alleges she did not have complete records (she describes 573 pages of records being produced in 2026, 2AC ¶¶ 44, 45), and she could not "meaningfully compare medication orders, medication administration records, allergy or warning information, discharge information, restraint-related information, and later produced records" until she reviewed later produced records. (2AC ¶¶ 36, 38, 39, 40.) She alleges she learned "additional restraint-related facts from Ms. Reed" who was at the hospital during "nearly all available visiting hours" and who "believed Plaintiff already knew those

facts." (2AC ¶ 46 [emphasis added].) Plaintiff alleges the discovery materials and "later-learned restraint facts" "confirmed, clarified and expanded facts Plaintiff had previously suspected." (2AC ¶ 47 [emphasis added].) (*See also* 2AC ¶ 48 [alleging she "gradually discovered and reasonably suspected wrongful hospital care and medication related causation only after discharge, after observing unexplained bruising and continuing symptoms, reviewing vague and incomplete discharge-related information," among other things [emphasis added].)

Plaintiff does not allege that after she was discharged, she was unable to make inquiries of her husband and friend Ms. Reed, who was at the hospital during almost all visiting hours, regarding what occurred during her hospitalization. She does not allege she was not given any discharge-related paperwork when she was discharged from the hospital on April 22, 2024. She does not allege that any bruising or symptoms did not appear until months after her discharge such that she did not suspect injury or a wrongful cause until months later. She therefore does not allege facts showing that "despite diligent investigation of the injury" she could not have discovered facts supporting the wrongful cause within the applicable statute of limitations. For the reasons stated above in regard to the truthful pleading/sham pleading issues, Plaintiff could not truthfully make such allegations in light of the allegations made in her original complaint.

Plaintiff does not allege specific facts showing when and how she discovered she was given improper medication, alleging only in the most general terms that her knowledge developed over some unspecified time period through her general observations, review of discharge-related information and consulting with physicians over an indeterminate time period. (*Fox, supra*, 35 Cal.4th at 808.) She also does not allege specific facts showing that she could not have discovered with reasonable diligence, such as communications with her husband and Ms. Reed, sufficient information to inform her she received improper medication and was restrained soon after she was released from the hospital. (*Id.*)

The allegations of the 2AC are insufficient to allege delayed discovery of her negligence-related claims under the above-cited standards so as to make the complaint timely filed within the statute of limitations when suit commenced on August 7, 2025. The case law provides that the cause of action accrues and the statute of limitations commences to run under the delayed discovery rule when the plaintiff first suspects injury and a wrongful cause, not when the plaintiff has complete evidence documenting witnesses and the wrongful acts causing the injury. (*See, e.g.*, 2AC ¶¶ 44, 45.) Suspicion of injury and a wrongful cause, not knowledge of all witnesses, complete records, and a full investigation of all facts supporting her negligence-related claims, is all that is required under *Fox*.

Though the Williams Declaration and the attached Exhibit A is evidence outside the 2AC and cannot make the 2AC sufficient if its allegations fail, Williams asks for leave to amend in her opposition if the demurrer were sustained. The Court has considered Exhibit A to her declaration for that purpose. She argues that the excerpts of the medical records show an "increasing understanding" and "realization." Instead, they show that as of no later than May 13, 2024, she had sufficient suspicion of her injury and its wrongful cause for the statute of limitations to have accrued. The Court finds the exhibit reinforces Plaintiff's knowledge of her injury and the wrongful cause shortly after her discharge. Specifically, a note in the excerpts of medical records show that as of May 13, 2024, Plaintiff had informed her doctor that she was treated with propofol in the hospital to which she is allergic and that she suspected she was restrained in the hospital based on bruising on her arms and wrist.

(Williams Decl. re Opp. Exh. A, entry dated 5/13/2024 PDF pp. 14-15.) These facts further support her knowledge of the factual basis of her claims by no later than May 2024 and undermine her vague allegations that her discovery of her claim developed over time on or after August 7, 2024. Again, these facts are considered only on the issue of the ability to amend to avoid the bar of the statute of limitations.

Conclusion as to Statute of Limitations on Three Negligence-Based Causes of Action

The facts alleged in the 2AC regarding delayed discovery are insufficient to state specific facts showing that she did not suspect her injuries and their wrongful cause until months after her discharge under the requirements of *Fox*. Further, Defendants have shown that the factual allegations of the 2AC regarding when she discovered or suspected her injury and its wrongful cause are inconsistent with and contradicted by facts alleged in her original complaint which were set forth under penalty of perjury, such that the sham pleading doctrine applies. Plaintiff has not demonstrated that she can allege facts to truthfully plead a claim for delayed discovery that would save her negligence-based causes of action from being barred by the statute of limitations of Code of Civil Procedure section 340.5, since her own evidence arguably offered to support amendment shows that she had knowledge or at least suspicion of her injuries and their wrongful cause as of May 13, 2024. The complaint initiating the action was filed more than one year after that date, and more than 90 days after she served her Notices of Intent to Sue under Code of Civil Procedure section 364.

The action was untimely with respect to her negligence claims. The claims in the first, second, and fourth causes of action are barred by the statute of limitations of Code of Civil Procedure section 340.5. The general demurrers to the first, second, and fourth causes of action are **SUSTAINED, WITHOUT LEAVE TO AMEND.**

C. Medical Battery Claim (3rd C/A)

Defendant asserts that Plaintiff has conceded that all claims she alleges are medical negligence claims. Plaintiff also alleges a claim for medical battery (3rd C/A). Battery, and specifically medical battery, is an intentional tort. (*Piedra v. Dugan* (2004) 123 Cal. App. 4th 1483, 1499.) For a claim of battery, a two-year statute of limitations applies under Code of Civil Procedure section 335.1. (Code Civ. Proc. § 335.1 ["Within two years: An action for assault, battery, or injury to, or for the death of, an individual caused by the wrongful act or neglect of another."]; *Samantha B. v. Aurora Vista Del Mar, LLC* (2022) 77 Cal.App.5th 85, 96; *Benun v. Superior Court* (2004) 123 Cal.App.4th 113, 126.)

"The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching." (*So v. Shin* (2013) 212 Cal.App.4th 652, 669.) "A medical battery occurs where 'a doctor obtains consent of the patient to perform one type of treatment and subsequently performs a substantially different treatment for which consent was not obtained.'" (*Id.*)

The Court interprets Plaintiff's allegations as attempting to allege medical battery based on conditional consent. (2AC ¶¶ 68-76.) "There are three elements to a claim for medical battery under a violation of conditional consent: the patient must show his consent was conditional; the doctor intentionally violated the condition while providing treatment; and the patient suffered harm as a

result of the doctor's violation of the condition. [Citation.]' [Citation omitted.]" (*Piedra v. Dugan* (2004) 123 Cal. App. 4th 1483, 1497-1498 [quoting *Conte v. Girard Orthopaedic Surgeons Medical Group, Inc.* (2003) 107 Cal.App.4th 1260, 1269].) "[A] claim for battery against a doctor as a violation of conditional consent requires proof the doctor intentionally violated the condition placed on the patient's consent. [Citation omitted.]" (*Id.* at 1499 [emphasis added].)

Notwithstanding the title of the cause of action as "medical battery," the determination of whether the one-year statute of limitations of Code of Civil Procedure section 340.5 for medical negligence applies depends on the gravamen of the cause of action. "[W]hen a plaintiff asserts a claim against a health care provider on a legal theory other than professional negligence, courts must determine whether the claim is nonetheless based on the health care provider's professional negligence, which would require application of MICRA. [Citations omitted.].) To make that determination, courts must examine not only the legal theory alleged, but also the nature of the health care provider's alleged conduct and the legislative history of the MICRA provision at issue. [Citations omitted.] When . . . the question presented concerns which limitations period applies, courts also must focus on the nature or gravamen of the claim, not the label or form of action the plaintiff selects. [Citations omitted.]" (*Larson, supra*, 230 Cal.App.4th at 347.)

In *Larson, supra*, 230 Cal.App.4th 336, the Court held that the statute of limitations of Code of Civil Procedure section 340.5 applied to the plaintiff's medical battery claim. The Court explained, "Although Larson labels his claims as intentional torts for battery and intentional infliction of emotional distress, the operative complaint's factual allegations, when read in conjunction with Larson's complaints in the Earlier Action, reveal Larson's claims are based on professional negligence within the meaning of section 340.5. Indeed, Larson alleges Shuman was the anesthesiologist for his surgery and injured Larson by forcefully grabbing and twisting his arm while conducting a preoperative checkup, and by prying open Larson's mouth and violently punching, lifting, and pushing Larson's face as he put on the mask to administer anesthesia. These allegations challenge the manner in which Shuman rendered the professional health care services he was hired to perform; they do not allege intentional torts committed for an ulterior purpose." (*Id.* at 351 [emphasis added].)

Plaintiff alleges that "to the extent any consent was obtained" from her or her family or authorized persons, it was provided "if at all" and limited to medically appropriate medications, and that there was no consent to "the administration of medications that were contraindicated, restricted, documented as unsafe for Plaintiff, or otherwise contrary to medication warnings, allergy-related information, adverse reaction history, contraindications, and 'Do Not Give' restrictions known or reasonable knowable to Defendants." (2AC ¶ 70.) (*See also* ¶¶ 18 ["Defendants had access to information" concerning Plaintiff's medication allergies], 19 ["medication-related warnings and restrictions were communicated" and medication restrictions were "known or knowable"], 25 ["Defendants' acts and omissions were not isolated clerical errors, but involved failures in medical decision-making, nursing care, communication, chart review, medication administration, patient safety, and hospital systems." (emphasis added)], 69, 71-73.) She alleges that the Defendants "intentionally performed, authorized, ordered, directed, permitted, administered, and/or caused the administration of medication related treatment to Plaintiff." (2AC ¶¶ 70, 72.)

She does not allege that Defendant "intentionally violated the condition placed on the patient's consent" which is required to state a claim for medical battery. (*Piedra, supra*, 123 Cal.App.4th at

1499 [emphasis added].) As alleged, the Court concludes the medical battery claim alleges only professional negligence, such that the statute of limitations of Code of Civil Procedure section 340.5 applies. The claim is untimely as subject to that statute for the reasons set forth above, and the delayed discovery rule does not apply to make the claim timely as explained in connection with the negligence-based claims.

The Medical Center Defendants have asked the Court to review Plaintiff's original complaint in connection with their demurrer to the 2AC in the context of the sham pleading doctrine. Reviewing the original complaint, with statements in the attachment to the original complaint made by Williams under penalty of perjury, Plaintiff alleged that (a) both her husband and her friend Ms. Reed repeatedly informed medical staff treating her that she had severe allergies to medications, (b) a Do Not Give medication list was provided to defendant, and (c) while Plaintiff was incapacitated, her husband in particular objected to the medications Plaintiff was being given and instructed defendants to cease medicating her. (Compl., Exh. A, Exh. 2, pp. 44-49.)

Notably, the allegations that were detailed in the original complaint in this regard are not present in the 2AC. The allegations from the original complaint suggest, however, that Plaintiff may be able to allege facts sufficient to state a medical battery claim based on conditional consent to treat her but not to give her specific medications to which she was allergic, that one or more of the defendants were informed of her allergies and instructed by her family and/or friend not to give specific medications, but that she was nevertheless intentionally administered such medications in violation of their conditional consent. Plaintiff filed her initial complaint within two years after her hospitalization, treatment, and discharge, which would make a medical battery claim timely under Code of Civil Procedure section 335.1. Where there is a reasonable possibility that a complaint may be amended to cure the deficiencies, then leave to amend must be granted. (*Quelimane Co.*, *supra*, 19 Cal.4th at 39.)

The general demurrer to the third cause of action for medical battery is therefore **SUSTAINED, WITH LEAVE TO AMEND**.

4. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: GROVE, JUDITH, RN
TENTATIVE RULING:

Before the Court is a demurrer by defendants San Ramon Regional Medical Center, Tenet Healthcare Corporation, Judith Grove R.N., and Rene Ochoa, RN to the second amended complaint. For the reasons set forth, the general demurrers to the first, second, and fourth causes of action are **SUSTAINED, WITHOUT LEAVE TO AMEND**; the general demurrer to the third cause of action is **SUSTAINED, WITH LEAVE TO AMEND**.

Background

Plaintiff Linda Williams alleges she was sustained injuries when she was admitted to San Ramon Regional Medical Center on April 20, 2024 and was given medication to which she was allergic.

(Second Amended Complaint ("2AC") ¶¶ 17-25.) She has sued San Ramon Regional Medical Center (the "Medical Center"), Tenet Healthcare Corporation ("Tenet"), two doctors (Drs. Narendra K. Malani and Joseph Toscano), and two nurses (Nurses Judith Grove and Rene Ochoa, each RNs). In her operative 2AC, she alleges causes of action for professional negligence/medical malpractice (1st C/A against all defendants), negligence (2nd C/A against the Medical Center and Tenet), medical battery (3rd C/A against the Medical Center, the doctors, and the nurses), and negligent infliction of emotional distress (NIED, 4th C/A against all defendants).

All defendants have filed demurrers to the 2AC. All defendants other than Dr. Toscano have filed motions to strike portions of the 2AC. Drs. Malani and Toscano have filed joinders in the motion to strike filed by defendants the Medical Center, Tenet Healthcare, RN Grove, and RN Ochoa (collectively the "Medical Center Defendants"). All of the demurrers, motions to strike, and joinders are set for hearing concurrently this date.

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pled factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123 [citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318].) In determining whether the complaint states a claim for relief, the Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) The Court also considers matters of which the Court can properly take judicial notice. (*Carloss, supra*, 242 Cal.App.4th at 123.)

A general demurrer may be sustained when the facts alleged show the action is barred by the statute of limitations. (*Vaca v. Wachovia Mortgage Corp.* (2011) 198 Cal.App.4th 737, 746.) To sustain a demurrer based on the statute of limitations, however, it must "clearly and affirmatively" appear on the face of the complaint that the cause of action is barred, not that it might be barred. (*Committee v. Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232 [demurrer based on statute of limitations does not lie when the action may be, but is not necessarily, barred].)

Demurrers for uncertainty are disfavored. (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135.) If a complaint fails to state a cause of action but there is a reasonable possibility of amendment to cure the deficiencies, then leave to amend must be granted. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 39.)

Defendants' Request for Judicial Notice

Defendants ask the Court to take judicial notice of Plaintiff's original complaint, Plaintiff's first amended complaint and the 2AC. The Court grants the unopposed request, subject to the limitations on the scope of judicial notice. (Evid. Code § 452(d); *StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice does not extend to the truth or proper interpretation of a pleading to the extent reasonably disputable]; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-115 [same].)

Notes on Plaintiff's Opposition

PDF page 7 of Plaintiff's opposition to the demurrer is single-spaced, which violates California Rule of Court, Rule 2.108, subdivision (1). The Court has exercised its discretion to consider the opposition in any event.

Plaintiff's opposition also includes a declaration by Plaintiff to which she attaches an "Exhibit A" which she states is a copy of a chronology of her "subsequent medical treatment and selected contemporaneous medical records maintained" by her treating providers. The Court does not consider evidence in ruling on a demurrer except matters subject to judicial notice. (*Carloss, supra*, 242 Cal.App.4th at 123; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) Though the Court does not consider the declaration and Exhibit to the Williams Declaration to test the sufficiency of the allegations of the 2AC, the Court will consider the declaration as a further offer of proof as to what Plaintiff might be able to allege if the demurrer were sustained and leave to amend granted.

Analysis

The Medical Center Defendants have generally demurred to the 2AC in its entirety and to each of the four causes of action. All of the defendants assert generally similar arguments in their demurrers that Plaintiff's claims are all untimely under Code of Civil Procedure section 340.5 and that her new allegations in the 2AC contradict facts alleged in her original complaint. Nevertheless, the Court makes separate rulings on the demurrers that are tailored as appropriate to the specific defendant's demurrer.

D. Statute of Limitations Applicable to Medical Negligence, Negligence, and Negligent Infliction of Emotional Distress Claims

Code of Civil Procedure 340.5 states in pertinent part, "In an action for injury or death against a health care provider based upon such person's alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first." (Code Civ. Proc. § 340.5.) The statute defines professional negligence generally as "a negligent act or omission to act by a health care provider in the rendering of professional services, which act or omission is the proximate cause of a personal injury or wrongful death." (Code Civ. Proc. § 340.5 subpart (2).)

Code of Civil Procedure section 364 requires a party to serve a Notice of Intent before commencing an action for medical negligence. (Code Civ. Proc. § 364(a) ["No action based upon the health care provider's professional negligence may be commenced unless the defendant has been given at least 90 days' prior notice of the intention to commence the action."].) The statute also provides, "If the notice is served within 90 days of the expiration of the applicable statute of limitations, the time for the commencement of the action shall be extended 90 days from the service of the notice." (Code Civ. Proc. § 364(d).)

Plaintiff alleges causes of action for professional negligence/medical malpractice (1st C/A), negligence (2nd C/A), and negligent infliction of emotional distress (4th C/A) all arising out of allegations regarding the rendition of medical treatment and related services by defendants. There appears to be no dispute among the parties that Code of Civil Procedure section 340.5 applies to those three causes of action.

The elements of negligence, including professional negligence or medical malpractice, are duty, breach of duty and causation. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) (*See also Flowers v. Torrance Memorial Hospital Medical Center* (1994) 8 Cal.4th 992, 995, 997-998 ["[W]e consider the distinction between 'ordinary' and 'professional' negligence and conclude that with respect to questions of substantive law they comprise essentially one form of action. Apart from statutory considerations, characterizing misfeasance as one type of negligence or the other generally only serves to define the standard of care applicable to the defendant's conduct."].)

Negligent infliction of emotional distress is not a tort separate from the tort of negligence. "We have repeatedly recognized that '[t]he negligent causing of emotional distress is not an independent tort, but the tort of negligence. [Citation.] The traditional elements of duty, breach of duty, causation, and damages apply. [¶] Whether a defendant owes a duty of care is a question of law. Its existence depends upon the foreseeability of the risk and a weighing of policy considerations for and against imposition of liability. [Citation.].' [Citations omitted.]" (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1072.) (*See also Marlene F. v. Affiliated Psychiatric Medical Clinic, Inc.* (1989) 48 Cal.3d 583, 588.) If a negligence cause of action is established, then damages for severe emotional distress may be recoverable based on the breach of duty owed to the plaintiff by the defendant. (*Marlene F., supra*, 48 Cal.3d at 590[.]) (*See also Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 984 ("Potter") [under California law, damages for emotional distress are recoverable only if the defendant has breached some other duty to the plaintiff].)

The Medical Center Defendants argue as a basis for the demurrer that Plaintiff's negligence claims are duplicative. The Court does not need to reach that argument as a basis for determining the demurrers to those causes of action, given the Court's conclusions regarding the statute of limitations applicable to the negligence-based claims.

E. Accrual of Statute of Limitations, Delayed Discovery Allegations, and Sham Pleading Doctrine Applied to Negligence Causes of Action

Plaintiff alleges after her admission to the Medical Center on April 20, 2024, she was given medication to which she was allergic and had a severe allergic reaction during her hospitalization. (2AC ¶¶ 1-3, 17-25.) Based on her allegations, all the essential elements of her cause of action were complete during her hospitalization, and unless tolled, the statute of limitations accrued when she sustained her injuries caused by the alleged negligent treatment. Plaintiff relies on the delayed discovery rule to toll the accrual of her claims and to make her initial complaint timely.

1. Delayed Discovery Rule

" 'Generally speaking, a cause of action accrues at 'the time when the cause of action is complete with all of its elements.' [Citations omitted.] An important exception to the general rule of accrual is the 'discovery rule,' which postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action. [Citations omitted.]" (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806-807.) "[U]nder the delayed discovery rule, a cause of action accrues and the statute of limitations begins to run when the plaintiff has reason to suspect an injury and some wrongful cause, unless the plaintiff pleads and proves that a reasonable investigation at that time would not have revealed a factual basis for that particular cause of action. In that case, the statute of limitations for that cause of action will be tolled until such time as a reasonable investigation would

have revealed its factual basis." (*Id.* at 803.)

"In order to rely on the discovery rule for delayed accrual of a cause of action, '[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.' [Citation omitted.]" In assessing the sufficiency of the allegations of delayed discovery, the court places the burden on the plaintiff to 'show diligence'; 'conclusory allegations will not withstand demurrer.' [Citation omitted.] [¶] [T]o employ the discovery rule to delay accrual of a cause of action, a potential plaintiff who suspects that an injury has been wrongfully caused must conduct a reasonable investigation of all potential causes of that injury. If such an investigation would have disclosed a factual basis for a cause of action, the statute of limitations begins to run on that cause of action when the investigation would have brought such information to light. In order to adequately allege facts supporting a theory of delayed discovery, the plaintiff must plead that, despite diligent investigation of the circumstances of the injury, he or she could not have reasonably discovered facts supporting the cause of action within the applicable statute of limitations period." (*Id.* at 808-809.)

"A plaintiff need not be aware of the specific 'facts' necessary to establish the claim; that is a process contemplated by pretrial discovery. Once the plaintiff has a suspicion of wrongdoing, and therefore an incentive to sue, she must decide whether to file suit or sit on her rights. So long as a suspicion exists, it is clear that the plaintiff must go find the facts; she cannot wait for the facts to find her." (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal. 3d 1103, 1111.) Rather, " 'when the patient's "reasonably founded suspicions [have been aroused]," and she has actually "become alerted to the necessity for investigation and pursuit of her remedies," the one-year period for suit [under Code of Civil Procedure section 340.5] begins.' [Citation omitted.]" (*Warren v. Schechter* (1997) 57 Cal. App. 4th 1189, 1201.)

2. Allegations Regarding Delayed Discovery in the 2AC

Plaintiff alleges she served Notices of Intent to sue on April 16, 2025. The complaint initiating this action was filed on August 7, 2025, more than 90 days after the notices were served and outside the 90-day tolling period provided in Code of Civil Procedure section 364. Unless the statute of limitations did not begin to run until on or after August 7, 2024, Plaintiff's complaint commencing this action is barred by the statute of limitations.

Plaintiff repeatedly alleges that during her hospitalization, which commenced April 20, 2024, she was medically compromised, unconscious, sedated, or experiencing a serious medical event. (2AC ¶¶ 33-35, 37.) The Medical Center Defendants highlight that these allegations alone demonstrate her knowledge, or at least suspicion, that she had suffered injury beginning on April 20, 2024 after she was admitted to the hospital so as to start the statute of limitations running.

In the 2AC, Plaintiff alleges that she "first began to suspect" that "her injuries were connected to wrongful hospital care" after "observing unexplained bruising, experiencing continuing symptoms, reviewing vague discharge-related information, and consulting with treating medical providers in the months following her return home." (2AC ¶ 38.) She implicitly concedes she had some hospital records when she was discharged, but she alleges she did not have complete records (she describes 573 pages of records being produced in 2026, 2AC ¶¶ 44, 45), and she could not "meaningfully

compare medication orders, medication administration records, allergy or warning information, discharge information, restraint-related information, and later produced records" until she reviewed later produced records. (2AC ¶¶ 36, 38, 39, 40.) She alleges she learned "additional restraint-related facts from Ms. Reed" who was at the hospital during "nearly all available visiting hours" and who "believed Plaintiff already knew those facts." (2AC ¶ 46 [emphasis added].) Plaintiff alleges the discovery materials and "later-learned restraint facts" "confirmed, clarified and expanded facts Plaintiff had previously suspected." (2AC ¶ 47 [emphasis added].) (*See also* 2AC ¶ 48 [alleging she "gradually discovered and reasonably suspected wrongful hospital care and medication related causation only after discharge, after observing unexplained bruising and continuing symptoms, reviewing vague and incomplete discharge-related information," among other things [emphasis added].)

Plaintiff has clearly alleged she was fully aware she had suffered a serious medical event during her hospitalization. (2AC ¶¶ 33-35, 37.) Plaintiff does not allege that after she was discharged, she was unable to make inquiries of her husband and friend Ms. Reed, who was at the hospital during almost all visiting hours, regarding what occurred during her hospitalization. She does not allege she was not given any discharge-related paperwork when she was discharged from the hospital on April 22, 2024. She does not allege that any bruising or symptoms did not appear until months after her discharge such that she did not suspect injury or a wrongful cause until months later. She therefore does not allege facts showing that "despite diligent investigation of the injury" she could not have discovered facts supporting the wrongful cause within the applicable statute of limitations. Indeed, she clearly knew the facts by April 16, 2025 when she served her Code of Civil Procedure section 364 notices.

Paragraph 38 of the 2AC states Plaintiff "first began to suspect" her injuries "were connected to a wrongful" cause (wrongful hospital care) "after observing unexplained bruising, experiencing symptoms, reviewing vague discharge-related information, and consulting with treating medical providers in the months following her return home." (2AC ¶ 38.) The bruising, other symptoms, and "discharge-related information" must reasonably have been available to Plaintiff at or shortly after her discharge, such that based on these allegations, she began to suspect injury and a wrongful cause shortly after her discharge (*Fox, supra*, 35 Cal.4th at 803.)

Plaintiff does not allege specific facts showing when and how she discovered she was injured and was given improper medication, alleging only in the most general terms that her knowledge developed over some unspecified time period through her general observations of bruising, review of discharge-related information and consulting with physicians over an indeterminate time period. (*Fox, supra*, 35 Cal.4th at 808.) She also does not allege specific facts showing that she could not have discovered with reasonable diligence, such as through communications with her husband and Ms. Reed, sufficient information to inform her that she received improper medication and was restrained at or shortly after she was released from the hospital. (*Id.*)

The allegations of the 2AC are insufficient to allege delayed discovery of her negligence-related claims under the above-cited standards so as to make the complaint timely filed within the statute of limitations. The case law provides that the cause of action accrues and the statute of limitations commences to run under the delayed discovery rule when the plaintiff first suspects injury and a wrongful cause, not when the plaintiff has complete evidence documenting witnesses and the wrongful acts causing the injury. (*See, e.g.*, 2AC ¶¶ 44, 45.) Suspicion of injury and a wrongful cause,

not knowledge of all witnesses, complete records, and a full investigation of all facts supporting her negligence-related claims, is all that is required for the statute of limitations of Code of Civil Procedure section 340.5 to begin to run under *Fox*.

3. Application of the Sham Pleading Doctrine Based on Original Complaint

Even if the allegations of the 2AC were sufficient taken alone to allege delayed discovery to some vague time frame on or after August 7, 2024, the Medical Center Defendants also rely on the "sham pleading" doctrine, arguing that Plaintiff has made factual allegations in the 2AC that contradict or are inconsistent with her allegations in the original complaint to try to avoid the claims being barred by the statute of limitations. (*Larson v. UHS of Rancho Palm Springs* (2014) 230 Cal.App.4th 336, 343-344.) Related to the sham pleading doctrine is the "truthful pleading" doctrine. (*Cantu v. Resolution Trust Corp.* (1992) 4 Cal.App.4th 857, 877-878 [doctrine of "truthful pleading" precludes a party from avoiding a demurrer by suppressing facts that prove the pleading false].) (*See also Hendy v. Losse* (1991) 54 Cal.3d 723, 742-743 [explaining doctrines, stating they apply to both verified and unverified complaints, and affirming order sustaining demurrer without leave to amend where plaintiff alleged initially on information and belief that defendant was an employee and sought to amend to allege defendant was an independent contractor without demonstrating original allegation was "the result of inadvertence or mistake, or that he has since discovered a factual basis for alleging" defendant was an independent contractor]; *Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 425-427 [stating, among other things, "Under the sham pleading doctrine, plaintiffs are precluded from amending complaints to omit harmful allegations, without explanation, from previous complaints to avoid attacks raised in demurrers or motions for summary judgment. [Citation omitted.]" (Emphasis added.)].)

" 'Generally, after an amended pleading has been filed, courts will disregard the original pleading. [Citation.] [¶] However, an exception to this rule is found . . . where an amended complaint attempts to avoid defects set forth in a prior complaint by ignoring them. The court may examine the prior complaint to ascertain whether the amended complaint is merely a sham.' [Citation.] . . . Moreover, any inconsistencies with prior pleadings must be explained; if the pleader fails to do so, the court may disregard the inconsistent allegations. [Citation.] Accordingly, a court is "not bound to accept as true allegations contrary to factual allegations in former pleading in the same case." [Citation.]" [Citations omitted.]" (*Larson, supra*, 139 Cal.App.4th at 343-344.) (*See also Nolte v. Cedars-Sinai Medical Center* (2015) 236 Cal.App.4th 1401, 1406 [" 'A plaintiff may not avoid a demurrer by pleading facts or positions in an amended complaint that contradict the facts pleaded in the original complaint or by suppressing facts which prove the pleaded facts false.' [Citation omitted.]"].)

The Court agrees that the truthful pleading/sham pleading doctrines apply here. Plaintiff has notably omitted harmful allegations made in her original complaint (Compl. Exh. A, pp. 42-43), including the date she was discharged (April 22, 2024), the fact that she was conscious and aware as of midday on April 22, 2024 when she was discharged, that she observed bruising on her wrists and arms when she was discharged and photographed the bruising when she returned to Tennessee the next day, and that she experienced the symptoms of an allergic reaction to acetaminophen for several days after she returned home. (Compl. Exh. A ¶ 40, p. 24, Exh. 2 pp. 43-49.) Plaintiff does not explain or justify her omission of those facts alleged in her original complaint when she filed the 2AC. (*Deveny, supra*,

139 Cal.App.4th at 426.)

Plaintiff's current allegations of delayed discovery in her 2AC are contradicted by, and inconsistent with, her factual allegations in her original complaint regarding when she had information sufficient for her to suspect she had been injured and that the injury was the result of a wrongful cause, namely, administration of inappropriate medications. For example, in the 2AC she alleges she began to suspect "wrongful hospital care after observing unexplained bruising" and suggests at the end of the paragraph her suspicion arose "in the months following her return home." (2AC ¶ 38.) In her original complaint, she alleged her first memory of her hospitalization was midday on Monday, April 22, 2024, and she alleged she was on a FaceTime call with her husband when a nurse came in to stop the blood pressure medication she was being administered. (Compl. Exh. A, Exh. 2 pp. 48-49.) She alleged, "When I left the hospital I had multiple IV sites and multiple unexplained bruises. I had severe allergic reaction symptoms from the Acetaminophen for several days after leaving the hospital making it impossible for me to eat solid food (I had pictures taken again of the trauma as soon as I returned back to TN the next day) **See Exhibit 3.**" (Compl. Exh. A, Exh. 2 p. 49 [emphasis added].) (See also Compl., Exh. A ¶ 40, p. 24 [left hospital with unexplained bruises].)

In the 2AC she alleges she was consulting with her medical providers during the months after she returned home, but she alleges she did not have her "complete chart" and other medical records at the time of her hospitalization. (2AC ¶¶ 36, 38.) In her original complaint, she provides details that undermine those allegations, stating her treatment for "PTSD" and other symptoms from the alleged improper medical care at the hospital from April 20-22, 2024 "is being coordinated by my primary physician who was outraged when she read the 92-page Hospital report." (Compl. Exh. A, Exh. 2 p. 49 [emphasis added].) Plaintiff in the 2AC alleges that she received the 573-page production of medical records in 2026 (2AC ¶¶ 44, 45) and that the "original discharge paperwork available to her did not disclose or meaningfully identify Mr. Williams or Ms. Reed as material participants or witnesses." (2AC ¶ 45.) However, Plaintiff specifically alleged in her original complaint she was told what occurred during her hospitalization by her husband, her friend Heather [Reed], her friend's sister Merrie Reed, and the 92-page report from San Ramon Regional Medical Center, a copy of which appears to be attached to her original complaint. (Compl. Exh. A, Exh. 2 p. 45, and pp. 93-187.) Indeed, her original complaint shows she filed complaints with the medical board about her treatment on June 10, 2024. (Compl. pp. 190-195.)

Plaintiff alleges no specific facts showing that beginning promptly after her discharge and return to Tennessee, when she observed bruising on her arms and wrists according to her original complaint, she was unable to investigate information regarding the events of her hospitalization through discussions with Mr. Williams (her husband) or Ms. Reed (her friend who was at the hospital during almost all visiting hours). (Compare 2AC ¶¶ 45, 46 to Compl. Exh. A, Exh. 2 pp. 44-49 [describing at length both her husband and Ms. Reed telling hospital and staff not to administer medications without approval of one of them, repeated instructions by husband and Ms. Reed to stop giving Plaintiff medication and giving the defendants a list of medications not to give, and alleging that her husband and Ms. Reed told her what happened during her hospitalization].) To the contrary, her prior complaint shows that she was informed of what happened during her hospitalization by her husband and friend and that the 92-page hospital report had information sufficient for her physician to be "outraged" by her treatment. She does not allege any facts asserting that she could not, or did not,

immediately investigate with her husband and friend the events that occurred during her hospitalization, particularly when in her original complaint she admits she was aware of bruising on her arms and the after effects of her acetaminophen allergic reaction when she was discharged.

Though the Williams Declaration and the attached Exhibit A is evidence outside the 2AC and cannot make the 2AC sufficient if its allegations fail, Williams asks for leave to amend in her opposition if the demurrer were sustained. The Court has considered Exhibit A to her declaration for that purpose. She argues that the excerpts of the medical records show an "increasing understanding" and "realization." Instead, they show that as of no later than May 13, 2024, she had sufficient suspicion of her injury and its wrongful cause for the statute of limitations to have accrued. The Court finds the exhibit reinforces Plaintiff's knowledge of her injury and the wrongful cause shortly after her discharge. Specifically, a note in the excerpts of medical records show that as of May 13, 2024, Plaintiff had informed her doctor that she was treated with propofol in the hospital to which she is allergic and that she suspected she was restrained in the hospital based on bruising on her arms and wrist.

(Williams Decl. re Opp. Exh. A, entry dated 5/13/2024 PDF pp. 17-18.) These facts further support her knowledge of the factual basis of her claims by no later than May 2024 and undermine her vague allegations that her discovery of her claim developed over time, and some time on or after August 7, 2024. Again, these facts are considered only on the issue of the ability to amend to avoid the bar of the statute of limitations.

4. Conclusion as to Statute of Limitations on Three Negligence-Based Causes of Action

The facts alleged in the 2AC regarding delayed discovery are insufficient to state specific facts showing that she did not suspect her injuries and their wrongful cause until months after her discharge under the requirements of *Fox*. Further, Defendant has shown that the factual allegations of the 2AC regarding when she discovered or suspected her injury and its wrongful cause are inconsistent with and contradicted by facts alleged in her original complaint which were set forth under penalty of perjury, such that the sham pleading doctrine applies. Plaintiff has not demonstrated that she can allege facts to truthfully plead a claim for delayed discovery that would save her negligence-based causes of action from being barred by the statute of limitations of Code of Civil Procedure section 340.5, since her own evidence arguably offered to support allowing leave to amend shows that she had knowledge or at least suspicion of her injuries and their wrongful cause as of May 13, 2024. The complaint initiating the action was filed more than one year after that date, and more than 90 days after she served her Notices of Intent to Sue under Code of Civil Procedure section 364.

The claims in the first, second, and fourth causes of action are barred by the statute of limitations of Code of Civil Procedure section 340.5. The general demurrers to the first, second, and fourth causes of action are **SUSTAINED, WITHOUT LEAVE TO AMEND.**

5. Medical Battery Claim (3rd C/A)

Plaintiff also alleges a claim for medical battery (3rd C/A). Battery, and specifically medical battery, is an intentional tort. (*Piedra v. Dugan* (2004) 123 Cal. App. 4th 1483, 1499.) For a claim of battery, a two-year statute of limitations applies under Code of Civil Procedure section 335.1. (Code Civ. Proc. § 335.1 ["Within two years: An action for assault, battery, or injury to, or for the death of, an individual caused by the wrongful act or neglect of another."]; *Samantha B. v. Aurora Vista Del Mar, LLC* (2022))

77 Cal.App.5th 85, 96; *Benun v. Superior Court* (2004) 123 Cal.App.4th 113, 126.)

"The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching." (*So v. Shin* (2013) 212 Cal.App.4th 652, 669.) "A medical battery occurs where 'a doctor obtains consent of the patient to perform one type of treatment and subsequently performs a substantially different treatment for which consent was not obtained.' " (*Id.*)

The Medical Center Defendants contend the medical battery cause of action is uncertain, and the allegations are not specific or sufficient to allege medical battery based on lack of consent. They argue that "administration of medications simply because Plaintiff opposed their use does not constitute a medical battery," an argument the Court finds somewhat baffling as a battery is by definition a touching or administration of a procedure or treatment to which the plaintiff did not consent. (MPA ISO Dem. p. 9, ll. 11-12.) They argue there is a "dispute" as to whether she had capacity to consent given her condition when she arrived at the hospital and whether she was fully informed of the risks, and therefore her claim is one for negligence. (MPA ISO Dem. p. 9, ll. 12-16.) These arguments are not fully consistent with the allegations of the 2AC and with the facts alleged in the original complaint. They do not address what the Court perceives as the essence of Plaintiff's medical battery cause of action, though for the reasons explained below, the Court agrees the cause of action as presently alleged fails to state sufficient facts to allege the medical battery cause of action.

The Court interprets Plaintiff's allegations as attempting to allege medical battery based on conditional consent. (2AC ¶¶ 68-76.) " 'There are three elements to a claim for medical battery under a violation of conditional consent: the patient must show his consent was conditional; the doctor intentionally violated the condition while providing treatment; and the patient suffered harm as a result of the doctor's violation of the condition. [Citation.]' [Citation omitted.]" (*Piedra v. Dugan* (2004) 123 Cal. App. 4th 1483, 1497-1498 [quoting *Conte v. Girard Orthopaedic Surgeons Medical Group, Inc.* (2003) 107 Cal.App.4th 1260, 1269].) "[A] claim for battery against a doctor as a violation of conditional consent requires proof the doctor intentionally violated the condition placed on the patient's consent. [Citation omitted.]" (*Id.* at 1499 [emphasis added].)

Notwithstanding the title of the cause of action as "medical battery," the determination of whether the one-year statute of limitations of Code of Civil Procedure section 340.5 for medical negligence applies depends on the gravamen of the cause of action. "[W]hen a plaintiff asserts a claim against a health care provider on a legal theory other than professional negligence, courts must determine whether the claim is nonetheless based on the health care provider's professional negligence, which would require application of MICRA. [Citations omitted.].) To make that determination, courts must examine not only the legal theory alleged, but also the nature of the health care provider's alleged conduct and the legislative history of the MICRA provision at issue. [Citations omitted.] When . . . the question presented concerns which limitations period applies, courts also must focus on the nature or gravamen of the claim, not the label or form of action the plaintiff selects. [Citations omitted.]" (*Larson, supra*, 230 Cal.App.4th at 347.)

In *Larson, supra*, 230 Cal.App.4th 336, the Court held that the statute of limitations of Code of Civil

Procedure section 340.5 applied to the plaintiff's medical battery claim. The Court explained, "Although Larson labels his claims as intentional torts for battery and intentional infliction of emotional distress, the operative complaint's factual allegations, when read in conjunction with Larson's complaints in the Earlier Action, reveal Larson's claims are based on professional negligence within the meaning of section 340.5. Indeed, Larson alleges Shuman was the anesthesiologist for his surgery and injured Larson by forcefully grabbing and twisting his arm while conducting a preoperative checkup, and by prying open Larson's mouth and violently punching, lifting, and pushing Larson's face as he put on the mask to administer anesthesia. These allegations challenge the manner in which Shuman rendered the professional health care services he was hired to perform; they do not allege intentional torts committed for an ulterior purpose." (*Id.* at 351 [emphasis added].)

Plaintiff alleges that "to the extent any consent was obtained" from her or her family or authorized persons, it was provided "if at all" and limited to medically appropriate medications, and that there was no consent to "the administration of medications that were contraindicated, restricted, documented as unsafe for Plaintiff, or otherwise contrary to medication warnings, allergy-related information, adverse reaction history, contraindications, and 'Do Not Give' restrictions known or reasonable knowable to Defendants." (2AC ¶ 70.) (*See also* ¶¶ 18 ["Defendants had access to information" concerning Plaintiff's medication allergies], 19 ["medication-related warnings and restrictions were communicated" and medication restrictions were "known or knowable"], 25 ["Defendants' acts and omissions were not isolated clerical errors, but involved failures in medical decision-making, nursing care, communication, chart review, medication administration, patient safety, and hospital systems." (emphasis added)], 69, 71-73.) She alleges that the Defendants "intentionally performed, authorized, ordered, directed, permitted, administered, and/or caused the administration of medication related treatment to Plaintiff." (2AC ¶¶ 70, 72.)

She does not allege that the Medical Center Defendants "intentionally violated the condition placed on the patient's consent" which is required to state a claim for medical battery. (*Piedra, supra*, 123 Cal.App.4th at 1499 [emphasis added].) (*See also Ashcraft v. King* (1991) 228 Cal.App.3d 604, 610-613 [cited by the Medical Center Defendants, in which the Court reversed a nonsuit for defendant on a medical battery claim where evidence showed plaintiff consented to a blood transfusion only from family members but was given blood from nonfamily donors and contracted HIV].) As alleged, the Court concludes the medical battery claim alleges only professional negligence, such that the statute of limitations of Code of Civil Procedure section 340.5 applies. The claim is untimely as subject to that statute for the reasons set forth above, and the delayed discovery rule does not apply to make the claim timely as explained in connection with the negligence-based claims.

The Medical Center Defendants have asked the Court to review Plaintiff's original complaint in connection with the demurrer to the 2AC in the context of the sham pleading doctrine. Reviewing the original complaint, with statements in the attachment to the original complaint, Plaintiff alleged that (a) both her husband and her friend Ms. Reed repeatedly informed medical staff treating her that she had severe allergies to medications, (b) a Do Not Give medication list was provided to defendants, and (c) while Plaintiff was incapacitated, her husband in particular objected to the medications Plaintiff was being given and instructed defendants to cease medicating her. (Compl., Exh. A, Exh. 2, pp. 44-49.)

Notably, the allegations in the original complaint in this regard are not present in the 2AC. The

allegations from the original complaint suggest, however, that Plaintiff may be able to allege facts sufficient to state a medical battery claim based on conditional consent to treat her but not to give her specific medications to which she was allergic, that one or more of the defendants were informed of her allergies and instructed by her family and/or friend not to give specific medications, but that she was nevertheless intentionally administered such medications in violation of their conditional consent. Plaintiff filed her initial complaint within two years after her hospitalization, treatment, and discharge, which would make a medical battery claim timely under Code of Civil Procedure section 335.1. Where there is a reasonable possibility that a complaint may be amended to cure the deficiencies, then leave to amend must be granted. (*Quelimane Co.*, *supra*, 19 Cal.4th at 39.)

The general demurrer to the third cause of action for medical battery is therefore **SUSTAINED, WITH LEAVE TO AMEND.**

5. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
*HEARING ON MOTION IN RE: STRIKE 2ND AMENDED COMPLAINT
FILED BY: GROVE, JUDITH, RN
TENTATIVE RULING:

Before the Court is a motion by defendants San Ramon Regional Medical Center, Tenet Healthcare Corporation, Judith Grove R.N., and Rene Ochoa, R.N. to strike portions of the second amended complaint. Defendants Narendra K. Malani, M.D. and Joseph Toscano, M.D. have joined in the motion. The motion and joinders are **DENIED AS MOOT**, based on the Court's concurrent ruling on the demurrers to the second amended complaint by the moving and joining defendants.

6. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
*HEARING ON MOTION IN RE: STRIKE PLTFS 2ND AMENDED COMPLAINT
FILED BY: MALANI, DR. NARENDRA K
TENTATIVE RULING:

Before the Court is a motion by defendant Narendra K. Malani, M.D. to strike portions of the second amended complaint. The motion is **DENIED AS MOOT**, based on the Court's concurrent ruling on the demurrer to the second amended complaint by the moving defendant.

7. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
HEARING IN RE: JOINDER IN CO-DEF SAN RAMON REGIONAL MEDICAL CENTER, ET AL.'S MOTION TO STRIKE PLAINTIFF'S SECOND AMENDED COMPLAINT
FILED BY: TOSCANO, DR. JOSEPH
TENTATIVE RULING:

See Line 5 above.

8. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
HEARING IN RE: JOINDER TO SAN RAMON REGIONAL MEDICAL CENTER, ET AL.'S MOTION TO STRIKE PLAINTIFF'S 2ND AMENDED COMPLAINT
FILED BY: MALANI, DR. NARENDRA K
TENTATIVE RULING:

See Line 5 above.

9. 9:00 AM CASE NUMBER: C26-01360
CASE NAME: NOEMI MURDOCH VS. FCA US LLC
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: FCA US LLC
TENTATIVE RULING:

WITHDRAWN by the moving party. See Notice of Withdrawal filed June 30, 2026.

10. 9:00 AM CASE NUMBER: L25-05639
CASE NAME: OPORTUN, INC VS. KAROL PEREZ MORA
HEARING IN RE: MOTION TO SET ASIDE DEFAULT JUDGMENT
FILED BY:
TENTATIVE RULING:

Defendant Karol Perez Mora (“Defendant”) filed a Motion to Set Aside Default and Default Judgment on February 10, 2026 (“Motion to Set Aside Default”). The Motion to Set Aside Default was set for hearing on June 22, 2026. In its discretion, the Court continued the matter to July 13, 2026 to allow all parties to be served with the hearing date and time.

Background

Plaintiff Oportun, Inc (“Plaintiff”) filed its Complaint on May 22, 2025.

A Proof of Service of Summons was filed September 17, 2025 (the “9/17/25 POSS”). The 9/17/25 POSS reflects service on Defendant by substitute service on “Jose Salazar, CO-RESIDENT” on August 28, 2025, at 12:45 pm, at “2761 GRANT ST APT 35, CONCORD, CA 94520.” 9/17/25 POSS, ¶¶3-5. The service was done by a registered process server. *Id.* at ¶7.

A default was entered against Defendant on November 10, 2025 (the “Default”). Thereafter, a request for entry of a default judgment was submitted to the Court. A default judgment was entered on December 23, 2025 (the “Default Judgment”).

Shortly thereafter, in February 2026, Defendant filed the Motion to Set Aside Default. The motion is supported by Defendant’s Declaration filed February 10, 2026 (the “Supporting Declaration”). A Proof of Service was filed February 10, 2026 reflecting service of the

Motion to Set Aside Default on Plaintiff's counsel. In its order adopting the tentative ruling issued for the initial hearing date, the Court noted that the service date was February 6, 2026. See Order on Motion filed June 22, 2026 ("June 22nd Order"). That indicated to the Court that the copy served would not have had the hearing date and time on the caption, as was written in by the clerk of the Court at the time of filing on or about February 10, 2026. *Id.*

The Court, in its discretion, continued the matter to July 13, 2026 so that the court clerk could serve all parties with the hearing date and time. The Certificate of Mailing filed June 22, 2026 reflects service of the June 22nd Order on all parties, giving notice of the new hearing date. The parties were further ordered to meet and confer regarding a stipulation to the relief sought by the Motion to Set Aside Default. At this time, no stipulation has been filed.

No opposition has been filed.

Analysis

1. Defendant Demonstrates That Service Was Defective.

Defendant argues that the service was defective.

The service was done by a registered process server. 9/17/25 POSS, ¶7. This raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

The Court find that the proffered evidence rebuts that presumption.

Defendant indicates that she does not live with anyone named "Jose Salazar" and did not learn of this lawsuit until the week of January 6, 2026 when she received documents in the mail from the Court. See Supporting Declaration, ¶¶3-6. She contends that she only lives with her husband who is 46 years old (as opposed to the person sub-served who is described as being 30 years old). *Id.* at ¶7; and c.f. 9/17/25 POSS, ¶5.b.

2. The Default And Entry Of Judgment Thereon Are Void.

The Court has authority to vacate a void judgment pursuant to Code of Civil Procedure section 473(d). See Code Civ. Proc. § 473(d) ("The court ... may, on motion of either party after notice to the other party, set aside any void judgment or order."); see also *Sindler v. Brennan* (2003) 105 Cal.App.4th 1350, 1353 [a judgment void on its face because rendered when the court lacked personal or subject matter jurisdiction or exceeded its jurisdiction in granting relief which the court had no power to grant is subject to collateral attack at any time and may be set aside under Code of Civil Procedure section 473, subdivision (d)].

In light of the Court's finding that service was defective, as addressed above, the Court concludes that the Default and the Default Judgment entered thereon are void.

3. Defendant Did Not Have Actual Notice Of The Pending Lawsuit.

Code of Civil Procedure section 473.5 allows a party to bring a motion to set aside a default entered against the party where “service of a summons has not resulted in actual notice to a party in time to defend the action.” Code Civ. Proc. § 473.5(a). The motion “shall be accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect.” *Id.* § 473.5(b).

Independent of the validity of the service, Defendant has demonstrated a lack of actual notice in time to defend the action which was not caused by Defendant’s avoidance of service or inexcusable neglect.

4. Mistake, Inadvertence, Surprise, Or Excusable Neglect.

Under Code of Civil Procedure section 473(b), the Court may, in its discretion, relieve a party from a default judgment resulting from “his or her mistake, inadvertence, surprise, or excusable neglect.” Code Civ. Proc., § 473(b); *Rivercourt Co. Ltd. v. Dyna-Tel, Inc.* (1996) 41 Cal.App.4th 1477, 1480 (“*Rivercourt*”). A motion seeking relief under section 473 is addressed to the sound discretion of the trial court. *Rivercourt, supra*, 41 Cal.App.4th at 1480. Neither mistake, inadvertence, nor neglect will warrant relief unless upon consideration of all of the evidence it is found to be excusable. *Conway v. Municipal Court* (1980) 107 Cal.App.3d 1009, 1017. The party seeking relief under section 473(b) bears the burden of establishing that the mistake, inadvertence, surprise or neglect was excusable. *Id.*

The Court need not consider this separate ground for relief in light of the findings above.

Disposition

The Court finds and orders as follows:

1. For the reasons set forth above, the Motion to Set Aside Default is GRANTED.
2. The Default and Default Judgment are hereby VACATED and set aside.
3. The case is set for a status conference regarding service of process and the next steps in the case for **October 22, 2026 at 8:30 am in Department 34** of the Court. Plaintiff shall give notice of the status conference to Defendant.
4. The Court shall prepare the order after hearing.

11. 9:00 AM CASE NUMBER: C25-02471
CASE NAME: KRANTI KAPRE V. CLEAR RECON CORP
HEARING IN RE: DEMURRER TO THE FIRST AMENDED COMPLAINT
FILED BY: DEFENDANT CLEAR RECON CORP
TENTATIVE RULING:

Defendant Clear Recon Corp (“Defendant”) filed a Demurrer on February 17, 2026 (the “Demurrer”) to the First Amended Complaint (“FAC”) filed by plaintiff Kranti Kapre

("Plaintiff"). The Demurrer was set for hearing on June 29, 2026. At the hearing on June 29, 2026, the Court in its discretion continued the matter to July 13, 2026, without objection. Plaintiff's motion to continue is granted, and the hearing date of October 19, 2026 is vacated.

Background

Defendant's Demurrer contends that the first, second, third, and fourth causes of action all fail to state facts sufficient to constitute a cause of action. See Demurrer, pp. 1-2. The Declaration of Service attached to the Demurrer reflects service of the Demurrer on Plaintiff. See Declaration of Service filed February 17, 2026 as part of Demurrer, p. 1.

No opposition has been filed to the Demurrer.

Analysis

The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading. *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227. However, leave to amend should not be granted where, in all probability, amendment would be futile. *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685.

First Cause of Action (BREACH OF CONTRACT)

Defendant contends that the breach of contract claim does not state a cause of action because it does not allege the agreement and does not allege plaintiff's performance. See Memorandum of Points and Authorities filed February 17, 2026 ("MPA"), p. 4. The Court agrees.

The elements of a breach of contract claim are (1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to plaintiff. See *Tribeca Companies, LLC v. First American Title Ins. Co.* (2015) 239 Cal.App.4th 1088, 1109. Here, Plaintiff has alleged that "Defendant breached the mortgage servicing agreement by failing to accurately apply payments and calculate interest, causing financial harm." FAC filed December 15, 2025, ¶12. Although Plaintiff has referenced an agreement, to properly plead the existence of a contract, a plaintiff must either set forth all of its material terms or attach the written agreement as an exhibit. See *Gilmore v. Lycoming Fire Ins. Co.* (1880) 55 Cal. 123, 124; see also, *Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 307 ("If the action is based on alleged breach of a written contract, the terms must be set out verbatim in the body of

the complaint or a copy of the written agreement must be attached and incorporated by reference.”) As Plaintiff has not alleged at least the material terms of the contract, the pleading is insufficient. Additionally, Plaintiff has made no mention of their performance or excuse for nonperformance. See FAC, ¶¶8-12. As any factual allegations for this element are absent from the pleading, the first cause of action is insufficient for this reason as well.

The Demurrer as to this cause of action is SUSTAINED.

Second Cause of Action (VIOLATION OF RESPA/HBOR)

Defendant contends that the RESPA violation claim does not state a cause of action because they are a foreclosure trustee, and “[t]hat code section relates to duties of the mortgage servicer.” MPA, p. 4. Regarding the HBOR violation, Defendant contends that no facts are pleaded to support claims under Civil Code §§2924.11, 2924.12, 2924.17. The Court agrees as to the HBOR violation and sustains the demurrer as to the RESPA violation on different grounds.

Although Defendant contends that they are not a mortgage servicer, for the purposes of a demurrer, the facts pleaded in the complaint are taken as true. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. Here, Plaintiff has pleaded that the mortgage was serviced by Defendant. FAC, ¶8. As such, Defendant’s status as the mortgage servicer will be taken as true. If not true, there are other procedural mechanisms to challenge the pleaded claims, such as a motion for summary judgement.

Chapter X of Title 12 of the Code of Federal Regulations (CFR) includes section 1024.35 which imposes certain requirements and procedures relating to the resolution of asserted errors by a borrower regarding their mortgage loan account.

To claim a violation of 12 C.F.R. section 1024.35, “plaintiffs must allege facts to show that they gave the requisite notices and that defendants failed to properly respond.” *Aghaji v. Bank of America* (2016) 247 Cal.App.4th 1110, 1119; see 12 C.F.R. §§1024.35(a), (e). Here, Plaintiff’s pleading is insufficient, because it does not allege facts about the nature of the notice given by Plaintiff or Defendant’s failure to respond. See FAC, ¶13.

Civil Code section 2924.12 creates a cause of action for injunctive relief to enjoin material violations of sections 2924.11 and 2924.17, among others. Civil Code section 2924.11 pertains to foreclosure prevention alternatives, and Civil Code section 2924.17 pertains to the accuracy of documents relating to foreclosures. The FAC contains no allegations relating to foreclosure prevention alternatives. See FAC, ¶13. While the FAC does refer to errors generally, it does not specify if those errors are related to documents covered by Civil Code section 2924.17. See FAC, ¶13.

For these reasons, the Demurrer as to this cause of action is SUSTAINED.

Third Cause of Action (UNFAIR BUSINESS PRACTICES)

Defendant argues that the Unfair Business Practice claim does not state a cause of action because it treats Defendant as the mortgage servicer and because it relies on the

previous two counts. See MPA, p. 5. The Court agrees as to the latter.

As previously discussed, for the purposes of this demurrer, Plaintiff's allegation that Defendant serviced the loan is taken as true.

The statutory language of section 17200 establishes three distinct prongs of unfair competition; those that are unlawful, unfair, or fraudulent. See *Cal-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 180.

The allegation appears to rely solely on the unlawful prong of Business & Professions Code section 17200. The FAC references the misapplication of payments and failure to provide accurate records which would presumably fall under the breach of contract and statutory violations alleged in the first and second causes of action. FAC, ¶¶12-14. However, as these previous causes of action have not been sufficiently plead, this cause of action does not sufficiently allege an unlawful practice.

The Demurrer as to this cause of action is SUSTAINED.

Fourth Cause of Action (INJUNCTIVE RELIEF/ TEMPORARY RESTRAINING ORDER)

Defendant contends that this cause of action does not state a cause of action because neither injunctive relief nor a temporary restraining order are standalone causes of action.

Although the fourth cause of action is labeled "Injunctive Relief / Temporary Restraining Order" it includes a request for an accounting which is a cause of action. This "requires a showing that a relationship exists between the plaintiff and defendant that requires an accounting, and that some balance is due the plaintiff that can only be ascertained by an accounting." *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 179. Here, the Plaintiff has not plead facts that indicate the accounts are so complicated that other legal remedies are insufficient. FAC, ¶¶8-15; See *Civic Western Corp. v. Zila Industries Inc.* (1977) 66 Cal.App.3d 1, 14.

For this reason, the Demurrer as to this cause of action is SUSTAINED.

Disposition

The Court finds and orders as follows:

1. The Demurrer is SUSTAINED.
2. Leave to amend is GRANTED.
3. Moving party to submit proposed form of order.